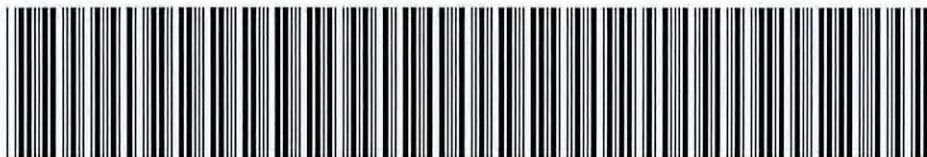


DI06-038

EWR D&I ANNOTATION

FAN-000001L062001DP522-9032

Artemis # : 000001L062001DP522**Record Created Date :** 03/06/2007**Printed Date :** 03/07/2007**Description :**

ON 07/04/04 AT APPROXIMATELY 1:10AM SUBJECT VEHICLE WAS TRAVELING EASTBOUND ON NOBLE AVE. SUBJECT VEHICLE VEERED OFF THE ROAD AT THE ENTRANCE TO A PRIVATE BUSINESS, CONTINUED EASTBOUND UNTIL STRIKING A POWER POLE IN THE PARKING LOT OF THE BUSINESS. SUBJECT VEHICLE DRIVER SUSTAINED FATAL INJURIES AND DIED AT THE SCENE BEFORE EMERGENCY PERSONNEL ARRIVED. LEGAL COUNSEL REPRESENTING DECEDENT'S ESTATE CLAIMS THAT SUBJECT VEHICLE'S OCCUPANT RESTRAINT SYSTEM, SUPPLEMENTAL RESTRAINT SYSTEM AND THE FRONT DRIVER'S SIDE MANUAL TRACK ADJUSTMENT MECHANISM ARE ALL DEFECTIVE IN DESIGN AND MANUFACTURE. COUNSEL STATES THAT THE AIR BAG SYSTEM WAS WITHIN THE MUST FIRE CRITERIA BUT THE AIR BAGS DID NOT DEPLOY. ALSO, THE OCCUPANT RESTRAINT SYSTEM FAILED TO RESTRAIN THE DRIVER FROM HITTING HER CHEST ON THE STEERING WHEEL, CAUSING SEVERE INJURIES AND DEATH. DEFECTS INCLUDING BUT NOT LIMITED TO WERE FAILURE OF THE PRETENSIONERS AND REACTORS. GENERAL MOTORS DI RESPONSE DOES NOT INCLUDE AN ASSESSMENT OF CAUSE REGARDING THIS CRASH. POLICE REPORTS STATE THAT CONDITIONS WERE NORMAL AND THE SUBJECT VEHICLE WAS TRAVELING AT A HIGHER THAN POSTED RATE OF SPEED. REPORTS ALSO STATES AIR BAGS DID NOT DEPLOY AND THE DRIVER WAS WEARING THE SEAT BELT. POLICE CONDUCTED A POST-COLLISION INTERVIEW WITH SUBJECT VEHICLE DRIVER'S SISTER AND SHE STATED THAT THE DRIVER SUFFERED FROM LUPUS WHICH HAD BEEN DIAGNOSED YEARS BEFORE THE ACCIDENT. SHE ALSO STATED THAT THE DRIVER WAS TAKING OXYICOTIN, AND THAT SHE HAD A MORPHINE PUMP INSTALLED WHICH HAD NOT FUNCTIONED PROPERLY FOR MONTHS PRIOR TO THE COLLISION. THE SISTER ALSO STATED THAT THEY HAD BEEN OUT DURING THE EVENING OF 07/03/04 AND JUST PRIOR TO THEM COMING HOME FROM A GET TOGETHER THEY WERE ASSAULTED AND FILED A REPORT WITH THE COUNTY SHERIFF'S DEPARTMENT. FINALLY, THE DRIVER'S SISTER INSISTED THAT DESPITE THE EVENTS OF THE EVENING, THE DRIVER {HER SISTER} WAS A HAPPY PERSON AND IN HER OPINION HER SISTER HAD FALLEN ASLEEP RIGHT BEFORE THE COLLISION. THERE ARE NO SAFETY RECALLS, NO FIELD REPORTS, OR PURSUITS CONCERNING THE NATURE OF THIS INCIDENT. HOWEVER, THERE WERE COMPLAINTS WITH VOQ'S AND THEY ARE INCLUDED WITH THIS REPORT. THIS ACCIDENT WAS ALSO EXAMINED IN NHTSA CASES DI06-32 SEQ#4 AND DI06-31 SEQ#1.

Print

Close



U.S. Department
of Transportation
**National Highway
Traffic Safety
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

CERTIFIED MAIL
RETURN RECEIPT REQUESTED

DEC - 12 2006

Ms. Gay Kent
General Motors Corp.
Mail Code 480-210-G11
30001 Van Dyke
Warren, MI 48090

NVS-217ph
DI06-038

Dear Ms. Kent:

The Office of Defects Investigation (ODI) of the National Highway Traffic Safety Administration (NHTSA) has received information about certain death incidents reported by General Motors in its light vehicle early warning report for the 2nd quarter of 2006. We are writing to request additional information about the following incidents:

Selected Death Incidents from the 2nd Quarter of 2006
For Reporting Category: L
For the following Sequence IDs: 12, 17, 113, 123, 124, 173, 174, 299, 361, 365, 382, 383, 387, 418, 437, 441, 445, 522

Unless otherwise stated in the text, the following definitions apply to these information requests:

Incident: each incident reported in Sequence IDs identified above.

Claim and Notice: shall have the meanings stated in 49 CFR §579.4(c). Claim and notice also specifically refer to the claim(s) and notice(s) that are the predicate for the early warning report on the incident.

Manufacturer: refers to General Motors.

Vehicle: the vehicle produced by General Motors that is identified in the claim or notice.

Tire: the tire produced by General Motors that is identified in the claim or notice.



VEHICLE SAFETY HOTLINE
888-327-4236

Equipment: the item of motor vehicle equipment produced by General Motors that is identified in the claim or notice.

Defect: means any failure, malfunction, lack of durability, or other problem in performance, construction, a component, or material of a motor vehicle or piece of motor vehicle equipment.

Document: "Document(s)" is used in the broadest sense of the word and shall mean all written, typed, graphic and photographic matter whatsoever (except autopsy photographs), be it in original, copy or electronic form. Any photograph originally produced in color must be provided in color and in electronic form, if possible. Furnish all documents whether verified by General Motors or not. If a document is not in the English language, provide both the original document and an English translation of the document. Document(s) includes all documents in General Motor's custody and/or control.

Please provide numbered responses to the following inquiries, repeating the applicable request verbatim before each response. After General Motor's response to each request, identify the source of the information and indicate the last date the information was gathered. When documents are produced, the documents shall be produced in an identified, organized manner that corresponds to each pertinent information request. A separate response must be provided for each incident. Each response, document or attachment must be clearly identified with the incident Sequence ID (SeqID) number.

1. Provide a complete copy of the initial claim or notice document(s) that notified General Motors of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.
2. Provide a copy of the Police Accident Report.
3. At your option, provide General Motor's assessment of the circumstances that led to the incident including General Motor's analysis of the claim and/or notice regarding allegations of a defect.

This letter is being sent to General Motors pursuant to 49 U.S.C. § 30166, which authorizes NHTSA to conduct any investigation that may be necessary to enforce Chapter 301 of Title 49 and to request reports and the production of things. It constitutes a new request for information. General Motors's failure to respond promptly and fully to this letter could subject General Motors to civil penalties pursuant to 49 U.S.C. § 30165 or lead to an action for injunctive relief pursuant to 49 U.S.C. § 30163. (Other remedies and sanctions are available as well.) Section 5(a) of the TREAD Act, codified at 49 U.S.C. § 30165(b), provides for civil penalties of up to \$5,000 per day, with a maximum of \$16,050,000 for a related series of violations, for failing or refusing to perform an act required under 49 U.S.C. § 30166. See 49 CFR 578.6 (as amended by 69 Fed. Reg. 57864 (Sept. 28, 2004)). This includes failing to respond to ODI information requests.

If General Motors claims that any of the information or documents provided in response to this information request constitute confidential commercial material within the meaning of 5 U.S.C. § 552(b) (4), or are protected from disclosure pursuant to 18 U.S.C. § 1905, General Motors must submit supporting information together with the materials that are the subject of the confidentiality request, in accordance with 49 CFR Part 512, as amended (69 Fed. Reg. 21409 et seq; April 21, 2004), to the Office of Chief Counsel (NCC-110), National Highway Traffic Safety Administration, Room 5219, 400 Seventh Street, S.W., Washington, D.C. 20590.

Your response to this letter, together with a copy of any confidentiality request, must be submitted to this office by **January 12, 2007**. Please include in your response the identification codes referenced on page one of this letter. If you are unable to provide all of the information requested within the time allotted, you must request an extension from me at (202) 366-4238, no later than five business days before the response due date. If all of the information requested by the original deadline is unavailable, you must submit a partial response by the original deadline with whatever information then is available, even if an extension is granted.

If you have any technical questions concerning this matter, please contact Mr. Leo Yon at (202) 366-7028 or by fax at (202) 366-7882.

Sincerely,


Christina Morgan, Chief
Early Warning Division
Office of Defects Investigation
Enforcement

DI06-038

**Manufacturer Response Letter cannot be
located.**

DI06-038
522 195492667 – 511176
2004 SATURN ION

Request for Information:

1. Provide a complete copy of the initial claim or notice document(s) that notified General Motors of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Document.

2. Provide a copy of the Police Accident Report.

Response: See Attached Document.

3. At your option, provide General Motor's assessment of the circumstances that led to the incident including General Motor's analysis of the claim and/or notice regarding allegations of a defect.

Response: To date, General Motors' investigation of the alleged defect has not included an assessment of the cause(s) of each incident responsive to this request. Some incident reports may not contain sufficient reliable information to accurately assess cause. Assessments of claims may be attorney work product and/or privileged. Therefore, information and documents provided in this response, if any, consist only of non-attorney work product and/or non-privileged material for incidents that have been investigated and assessed.

SUMMONS
(CITACION JUDICIAL)

225 5/19/06 SUM-100

NOTICE TO DEFENDANT:

(AVISO AL DEMANDADO):

GENERAL MOTORS CORPORATION; SATURN CORPORATION which will do business in California as SATURN MOTOR CAR CORPORATION; HERWALDT AUTOMOTIVE GROUP, INC. dba SATURN OF FRESNO; TRW AUTOMOTIVE HOLDINGS CORP; TRW VEHICLE SAFETY SYSTEMS, INC.; TAKATA SEAT BELTS, INC; and DOES 1 TO 20, inclusive,

FOR COURT USE ONLY
(SOLO PARA USO DE LA CORTE)

FILED

MAY 05 2006

FRESNO COUNTY SUPERIOR COURT

By

NAG DEPUTY

YOU ARE BEING SUED BY PLAINTIFF:

(LO ESTÁ DEMANDANDO EL DEMANDANTE):

RICHARD TOWNE, individually and as successor in interest to the estate of SHARA LYNN TOWNE deceased; JEFFREY TOWNE and JESSICA TOWNE, minors, by and through their Guardian ad Litem, RICHARD TOWNE; AARON BURDGE and HOLLI BURDGE, minors, by and through their Guardian ad Litem, JOHNNY BURDGE; and

You have 30 CALENDAR DAYS after this summons and legal papers are served on you to file a written response at this court and have a copy served on the plaintiff. A letter or phone call will not protect you. Your written response must be in proper legal form if you want the court to hear your case. There may be a court form that you can use for your response. You can find these court forms and more information at the California Courts Online Self-Help Center (www.courtinfo.ca.gov/selfhelp), your county law library, or the courthouse nearest you. If you cannot pay the filing fee, ask the court clerk for a fee waiver form. If you do not file your response on time, you may lose the case by default, and your wages, money, and property may be taken without further warning from the court.

There are other legal requirements. You may want to call an attorney right away. If you do not know an attorney, you may want to call an attorney referral service. If you cannot afford an attorney, you may be eligible for free legal services from a nonprofit legal services program. You can locate these nonprofit groups at the California Legal Services Web site (www.lawhelpcalifornia.org), the California Courts Online Self-Help Center (www.courtinfo.ca.gov/selfhelp), or by contacting your local court or county bar association.

Tiene 30 DÍAS DE CALENDARIO después de que le entreguen esta citación y papeles legales para presentar una respuesta por escrito en esta corte y hacer que se entregue una copia al demandante. Una carta o una llamada telefónica no lo protegen. Su respuesta por escrito tiene que estar en formato legal correcto si desea que procesen su caso en la corte. Es posible que haya un formulario que usted pueda usar para su respuesta. Puede encontrar estos formularios de la corte y más información en el Centro de Ayuda de las Cortes de California (www.courtinfo.ca.gov/selfhelp/espanol/), en la biblioteca de leyes de su condado o en la corte que le quede más cerca. Si no puede pagar la cuota de presentación, pida al secretario de la corte que le dé un formulario de exención de pago de cuotas. Si no presenta su respuesta a tiempo, puede perder el caso por incumplimiento y la corte le podrá quitar su sueldo, dinero y bienes sin más advertencia.

Hay otros requisitos legales. Es recomendable que llame a un abogado inmediatamente. Si no conoce a un abogado, puede llamar a un servicio de remisión a abogados. Si no puede pagar a un abogado, es posible que cumpla con los requisitos para obtener servicios legales gratuitos de un programa de servicios legales sin fines de lucro. Puede encontrar estos grupos sin fines de lucro en el sitio web de California Legal Services, (www.lawhelpcalifornia.org), en el Centro de Ayuda de las Cortes de California, (www.courtinfo.ca.gov/selfhelp/espanol/) o poniéndose en contacto con la corte o el colegio de abogados locales.

The name and address of the court is:

(El nombre y dirección de la corte es):

Fresno County Superior Court
1100 Van Ness Avenue

Fresno, CA 93724

CASE NUMBER:
(Número de caso):

CG 00 759

The name, address, and telephone number of plaintiff's attorney, or plaintiff without an attorney, is:

(El nombre, la dirección y el número de teléfono del abogado del demandante, o del demandante que no tiene abogado, es):

Clarice J. Letizia, SBN 129331

Bisnar & Chase

1301 Dove Street, #120

Newport Beach, CA 92660

DATE:

(Fecha)

Clerk, by N GOEHRING

(Secretario)

Deputy

(Adjunto)

(For proof of service of this summons, use Proof of Service of Summons (form POS-010).)

(Para prueba de entrega de esta citación use el formulario Proof of Service of Summons, (POS-010)).

NOTICE TO THE PERSON SERVED: You are served

1. ☐ as an individual defendant.

2. ☐ as the person sued under the fictitious name of (specify):

3. ☒ on behalf of (specify): GENERAL MOTORS CORPORATION

under: ☒ CCP 416.10 (corporation)

☐ CCP 416.20 (defunct corporation)

☐ CCP 416.40 (association or partnership)

☐ other (specify):

☐ CCP 416.60 (minor)

☐ CCP 416.70 (conservatee)

☐ CCP 416.90 (authorized person)

4. ☐ by personal delivery on (date):

Page 1 of 1

SUPERIOR COURT OF CALIFORNIA • COUNTY OF FRESNO Civil Department - Non-Limited 1100 Van Ness Avenue Fresno, CA 93724-0002 (559)488-3352	<i>FOR COURT USE ONLY</i> Filed Fresno County
TITLE OF CASE: Richard Towne vs General Motors Corp	MARCH 09, 2006 By System
NOTICE OF CASE MANAGEMENT CONFERENCE AND ASSIGNMENT OF JUDGE FOR ALL PURPOSES	CASE NUMBER: 06CECG00759MBS

To All Parties and their Attorneys of Record:

This case has been assigned to Judge M. Bruce Smith for all purposes.
All future hearings will be scheduled before this assigned judge.

You are required to appear at a Case Management Conference on **JULY 10, 2006 at 01:30 PM** in **Dept 3, Floor B2** of the court located at **1100 Van Ness Avenue, Fresno, California.**

You must comply with the requirements set forth in Fresno Superior Court Local Rule 3.

Failure to appear at the conference may result in imposition of sanctions, waiver of jury trial, or other adverse consequences.

Defendants: Appearance at the Case Management Conference does not excuse you from having to file your response in proper legal form within 30 days after the Summons is served on you. You could lose the case if you do not file your response on time. If you do not know an attorney, and do not have one, you may call an attorney referral service or a legal aide office (*listed in the phone book*).

DECLARATION

I declare under penalty of perjury under the laws of the State of California that I gave a copy of the Notice of Case Management Conference and Assignment of Judge for All Purposes to the person who presented this case for filing.

Date: **March 9, 2006**

Clerk, by _____, Deputy
N. Goehring

Fresno Superior Court

ALTERNATIVE DISPUTE RESOLUTION

Alternative Dispute Resolution (ADR) refers to different processes available to help you settle your lawsuit without having to go to trial. The most common forms of ADR are Mediation, Arbitration, and Case Evaluation. In ADR, a trained and impartial person decides or helps the parties reach resolution of their dispute for themselves. These persons are called neutrals. Neutrals normally are chosen by the disputing parties or by the court.

There are many advantages to ADR. ADR is often quicker. A dispute can be resolved in a matter of days or weeks with ADR, while a lawsuit can take months or even years. ADR is often less expensive. Court costs, attorney fees, and expert fees can be saved. ADR can permit more participation. The parties can choose the ADR process that is best for them. ADR can be cooperative. This means that the parties having a dispute can work together with the neutral to resolve the dispute and agree to a remedy that makes sense to them. ADR can reduce stress. There are fewer, if any, court appearances. ADR can be quicker, save money, and is often less stressful than litigation. Most people have reported a high degree of satisfaction with ADR. Because of these advantages, many parties choose this process to resolve disputes instead of filing a lawsuit. Even after a lawsuit has been filed, the court can refer the dispute to a neutral before the parties' positions harden and the lawsuit becomes costly. Alternative Dispute Resolution has been used to resolve disputes even after a trial, when the result is appealed.

The Potential Disadvantages of ADR: ADR may not be suitable for every dispute. If ADR is binding, the parties normally give up most court protections, including a decision by a judge or jury under formal rules of evidence and procedure, and review for legal error by an appellate court. Generally, there is less opportunity to find out about the other side's case with ADR than with litigation. ADR may not be effective if it takes place before the parties have sufficient information to resolve the dispute. The neutral may charge a fee for his or her services. If a dispute is not resolved through ADR, the parties may have to put time and money into both ADR and a lawsuit. Lawsuits must be brought with specified periods of time, known as statutes of limitations. Parties must be careful not to let a statute of limitation run out while a dispute is in an ADR process.

The Most Common Types of ADR:

Mediation: In Mediation, a neutral (mediator) assists the parties in reaching a mutually acceptable resolution of their dispute. Unlike lawsuits or some other types of ADR, the Mediator does not decide how the dispute is to be resolved. The parties do. Mediation is a process in which an impartial third party intervenes to help people communicate with one another in order to reach a mutually agreeable resolution. Advantages are it's reduced cost effectiveness, timeliness and that the disputing parties have control over the outcome for

settlement. With mediation there is a potential for long lasting agreements because parties take a major role in resolving their dispute.

Mediation can be particularly effective when the parties have a continuing relationship, like neighbors or business people. It is also very effective where personal feelings are getting in the way of a resolution. Mediation normally gives the parties a chance to express their feelings and find out how each other sees things. Mediation can also be successful for victims seeking restitution from offenders. In this kind of mediation process, mediators can meet separately with parties when a criminal or violent act has occurred.

Arbitration: In arbitration, a neutral (arbitrator) reviews evidence, hears arguments, and makes a decision (award) to resolve the dispute. This is very different from mediation, where the mediator helps the parties reach their own resolution. Arbitration normally is more informal and quicker, and less expensive than a lawsuit. Arbitration is best for cases when the parties have no relationship except for the dispute.

There are two kinds of arbitration in California, private and judicial. **Private Arbitration** usually takes place outside of the courts and is normally binding upon prior agreement of the parties. In most cases binding means that the arbitrator's decision (award) is final and there will not be a trial or an opportunity to appeal the decision. For example, an arbitrator may hear a case in a matter of hours that would normally require a week- long trial. This is because the evidence can be submitted by documents, rather than by testimony.

By contrast, **Judicial Arbitration** is assigned to an Arbitrator through appropriate referral by the court. The process is not binding unless the parties agree that it shall be. A party who does not agree with the award/decision may file a request for a trial with the court within a specified time. However, if that party does not do better in the trial than in arbitration, he or she may have to pay a penalty.

Case Evaluation: In case evaluation a neutral (the evaluator) gives an opinion on the strengths and weaknesses of each party's evidence and arguments. Each party gets a chance to present their case and hear the other side. This may lead to a settlement, or at least help the parties prepare to resolve the dispute later. Case evaluation, like mediation, can come early in the dispute and save time and money. Case evaluation is most effective when someone has an unrealistic view of the dispute or when the primary issue is determining case value or when there are technical or scientific questions to be answered.

For More Information: There are several other types of ADR. Some of these include conciliation, settlement conference, fact finding, mini trials, Victim Offender Reconciliation Program (VORP), and summary jury trials. Sometimes parties will try a combination of ADR types. The important thing is to try to find the type of ADR that is most appropriate in resolving your dispute. The selection of a neutral is an important decision. There is no legal requirement that the neutral be licensed or hold any particular certificate. However, some programs have established qualification requirements for neutrals. Agreements reached through ADR normally are put in writing and if the parties wish, may become binding contracts that can be enforced by a judge. You may wish to seek the advice of an attorney as to your legal rights and other matters relating to the dispute.

ADR Reporting Requirements: Upon filing a civil lawsuit in the Fresno Superior Court you will be given a date for a Case Management Conference (CMC). At the CMC you will be assigned a date for your trial and you will be ordered to engage in some form of ADR within 180 days after your CMC hearing. Please refer to the Court's standing order re: CMC. This order will include additional information regarding ADR requirements.

To locate a dispute resolution program or neutral in our community you can call the Fresno Superior Court ADR Administrator at (559) 488-2778, fax (559) 488-3337 or e-mail: mhenson@fresno.courts.ca.gov

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, state bar number, and address):		FOR COURT USE ONLY
TELEPHONE NO:	FAX NO:	
ATTORNEY FOR (Name):		
SUPERIOR COURT OF CALIFORNIA • COUNTY OF FRESNO 1100 Van Ness Avenue Fresno, California 93724-0002 (559) 488-2778		
PLAINTIFF/PETITIONER:		
DEFENDANT/RESPONDENT:		
STIPULATION REGARDING ALTERNATIVE DISPUTE RESOLUTION (ADR)		CASE NUMBER:

The parties stipulate that they will engage in the following Alternative Dispute Resolution (ADR) process:

☐ Mediation
 ☐ Arbitration
 ☐ Neutral Case Evaluation
 ☐ Other _____

The parties further stipulate that _____ has been selected as the mediator/arbitrator/neutral.

Address: _____
 City, State, Zip _____
 Phone Number: () _____

The parties acknowledge that they shall engage in some form of Alternative Dispute resolution (ADR). The Alternative Dispute resolution (ADR) must be completed within 180 days after the Case Management Conference or prior to the Mandatory Settlement Conference, whichever is earlier, unless given prior approval by the court to continue the date.

Parties will be required to file an **Alternative Dispute Resolution (ADR) Status Report** at least 10 court days prior to the Mandatory Settlement Conference. Failure to do so may result in sanctions at an Order to Show Cause (OSC) hearing set by the court.

_____	_____	_____
Date	Type or Print Name	Signature of Party or Attorney for Party
_____	_____	_____
Date	Type or Print Name	Signature of Party or Attorney for Party

☐ Additional signatures on Stipulation Regarding Alternative Dispute Resolution (ADR) Attachment

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, state bar number, and address):		FOR COURT USE ONLY
TELEPHONE NO:	FAX NO:	
ATTORNEY FOR (Name):		
SUPERIOR COURT OF CALIFORNIA • COUNTY OF FRESNO 1100 Van Ness Avenue Fresno, California 93724-0002 (559) 488-2778		
PLAINTIFF/PETITIONER:		
DEFENDANT/RESPONDENT:		
ALTERNATIVE DISPUTE RESOLUTION STATUS REPORT (ADR)		CASE NUMBER:

Type of Civil Case:
☐ Personal Injury – Property Damage/Auto ☐ Personal Injury – Property Damage ☐ Contract ☐ Other _____

Date Complaint Filed: _____

Date of Alternative Dispute Resolution (ADR) Conference: _____

Name, address, and telephone number of person who conducted the Alternative Dispute Resolution (ADR) Conference:

Amount in controversy:
☐ \$0 to \$25,000 ☐ \$25,000 to \$50,000 ☐ \$50,000 to \$100,000 ☐ Over \$100,000.00 (specify) _____

Case resolved by Alternative Dispute Resolution:

☐ Yes (proper filing of a Notice of Settlement or Dismissal form is required by clerk's office)

☐ No Reason: _____

Alternative Dispute Resolution process concluded:

☐ Yes

☐ No Reason for delay: _____
 Next scheduled hearing date: _____

Type of resolution process used:

☐ Mediation ☐ Arbitration ☐ Neutral Case Evaluation ☐ Other (specify): _____

Case was resolved by:

☐ Direct Result of ADR Process ☐ Indirect Result of ADR Process ☐ Resolution was unrelated to ADR Process

Check the box of the closest estimated dollar amount that you in

☐ \$0 ☐ \$250 ☐ \$500 ☐ \$750 ☐ \$1,000 ☐ More than \$1,000 (specify) _____

Check the box of the closest estimated dollar amount spent on the dispute resolution process over and above the dollar amount that would have been spent on the traditional litigation process:

☐ \$0 ☐ \$250 ☐ \$500 ☐ \$750 ☐ \$1,000 ☐ More than \$1,000 (specify) _____

Case Number: _____

Check the closest estimated number of court days you saved in motions, hearings, conferences, trials, etc. as a direct result of this case being referred to this dispute resolution process:

☐ 0 Days

☐ 1 Day

☐ More than 1 day (specify) _____

If the dispute resolution process caused an increase in court time for this case, please check the estimated number of additional court days:

☐ 0 Days

☐ 1 Day

☐ More than 1 day (specify) _____

I would you be willing use the dispute resolution process again:

☐ Yes

☐ No

Please provide any additional comments below regarding your experience with the ADR process:

1 **BISNAR & CHASE LLP**
2 ONE NEWPORT PLACE
3 1301 DOVE ST., SUITE 120

NEWPORT BEACH, CA 92660

PHONE: (949) 752-2999

FACSIMILE: (949) 752-2777

BRIAN D. CHASE, State Bar No. 164109

JERRY N. GANS, State Bar No. 113435

CLARICE J. LETIZIA, State Bar No. 129331

FILED

MAY - 3 2006

FRESNO COUNTY SUPERIOR COURT

By _____ LE. DEPUTY

6 Attorneys for Plaintiffs, **RICHARD TOWNE**,
7 individually and as successor in interest to the estate
8 of **SHARA LYNN TOWNE**, deceased; **AARON BURDGE**
9 and **HOLLI BURDGE**, minors, by and through their
10 Guardian ad Litem, **JOHNNY BURDGE**, and
11 **ANDREW BURDGE**

12 SUPERIOR COURT OF CALIFORNIA,
13 COUNTY OF FRESNO

14 **RICHARD TOWNE**, individually and as successor
15 in interest to the estate of **SHARA LYNN**
16 **TOWNE**, deceased; **JEFFREY TOWNE** and
17 **JESSICA TOWNE**, minors, by and through their
18 Guardian ad Litem, **RICHARD TOWNE**; **AARON**
19 **BURDGE** and **HOLLI BURDGE**, minors, by and
20 through their Guardian ad Litem, **JOHNNY**
21 **BURDGE** and **ANDREW BURDGE**,

CASE NO. **05CECG00759MBS**

SURVIVOR'S STATEMENT

(C.C.P. §377.32)

22 Plaintiffs,

23 vs.

24 GENERAL MOTORS CORPORATION;
25 SATURN CORPORATION which will do
26 business in California as SATURN MOTOR CAR
27 CORPORATION; HERWALDT AUTOMOTIVE
28 GROUP, INC. dba SATURN OF FRESNO; TRW
AUTOMOTIVE HOLDINGS CORP; TRW
VEHICLE SAFETY SYSTEMS, INC; DAYTON
T. BROWN; and DOES 1 to 20, inclusive,

Defendants.

29 I, **RICHARD TOWNE**, individually and as successor in interest to the Estate of **SHARA**
30 **LYNN TOWNE**, deceased, declare and state as follows.

31 1. I am and was the lawfully married spouse of the decedent, **SHARA LYNN TOWNE**
32 at the time of her death, on July 4, 2004. I make this statement under the provisions of *California Code*

1 of Civil Procedure §377.22.

2 2. The decedent is SHARA LYNN TOWNE

3 3. SHARA LYNN TOWNE died on July 4, 2004 in Tulare County, California. A certified
4 copy of her death certificate is attached hereto.

5 4. Plaintiffs (~~STEP CHILDREN~~ JEFFREY TOWNE, JESSICA TOWNE,) HOLLI BURDGE, AARON
6 BURDGE and ANDREW BURDGE, were and are the natural children of the decedent, SHARA
7 LYNN TOWNE

8 5. No proceeding is now pending in California for the administration of the decedent's
9 estate.

10 6. I am the successor in interest to the Estate of SHARA LYNN TOWNE, as defined in
11 section 377.11 of the *California Code of Civil Procedure* and succeed to the decedent's interests in this
12 action.

13 9. No other person has a superior right to commence this action or proceeding or to be
14 substituted for the decedent in any pending action or proceeding.

15 I declare, under penalty of perjury, under the laws of the State of California, that the foregoing
16 is true and correct, and that this Declaration was executed in Visalia, California.

17
18 Dated: 2-16-06



19 RICHARD TOWNE, individually and as Successor in Interest
20 to the Estate of SHARA LYNN TOWNE deceased.

1 **BISNAR & CHASE LLP**
2 ONE NEWPORT PLACE
3 1301 DOVE ST., SUITE 120
4 NEWPORT BEACH, CA 92660
5 PHONE: (949) 752-2999
6 FACSIMILE: (949) 752-2777

7 BRIAN D. CHASE, State Bar No. 164109
8 JERRY N. GANS, State Bar No. 113435
9 CLARICE J. LETIZIA, State Bar No. 129331

FILED

MAY - 3 2005

FRESNO COUNTY SUPERIOR COURT
LE - DEPUTY

10 Attorneys for Plaintiffs, **RICHARD TOWNE**
11 individually and as successor in interest to the estate
12 of **SHARA LYNN TOWNE**, deceased; **AARON BURDGE**
13 and **HOLLI BURDGE**, minors, by and through their
14 Guardian ad Litem, **JOHNNY BURDGE**, and
15 **ANDREW BURDGE**

16 SUPERIOR COURT OF CALIFORNIA,
17 COUNTY OF FRESNO

18 **RICHARD TOWNE**, individually and as successor
19 in interest to the estate of **SHARA LYNN**
20 **TOWNE**, deceased; **JOHNNY TOWNE** and
21 **JESSICA TOWNE**, minors, by and through their
22 Guardian ad Litem, **RICHARD TOWNE**, **AARON**
23 **BURDGE**, and **HOLLI BURDGE**, minors, by and
24 through their Guardian ad Litem, **JOHNNY**
25 **BURDGE**, and **ANDREW BURDGE**,

26 Plaintiffs,

27 vs.

28 GENERAL MOTORS CORPORATION;
SATURN CORPORATION which will do
business in California as SATURN MOTOR CAR
CORPORATION; HERWALDT AUTOMOTIVE
GROUP, INC. dba SATURN OF FRESNO; TRW
AUTOMOTIVE HOLDINGS CORP.; TRW
VEHICLE SAFETY SYSTEMS, INC; TAKATA
SEAT BELTS, INC; and DOES 1 to 20, inclusive,

Defendants.

CASE NO. **05CECB00759MBS**

SURVIVOR'S STATEMENT

(C.C.P. §377.32)

I, **RICHARD TOWNE**, individually and as successor in interest to the Estate of **SHARA**
LYNN TOWNE, deceased, declare and state as follows.

1. I am and was the lawfully married spouse of the decedent, **SHARA LYNN TOWNE**,
at the time of her death, on July 4, 2004. I make this statement under the provisions of *California Code*

1 of Civil Procedure §377.22.

2 2. The decedent is SHARA LYNN TOWNE

3 3. SHARA LYNN TOWNE died on July 4, 2004 in Tulare County, California. A certified
4 copy of her death certificate is attached hereto.

5 4. Plaintiffs, HOLLI BURDGE, AARON BURDGE, and ANDREW BURDGE, were and
6 are the natural children of the decedent, SHARA LYNN TOWNE.

7 5. Plaintiffs, JEFFREY TOWNE and JESSICA TOWNE, were and are the step children
8 of the decedent, SHARA LYNN TOWN, and resided in the decedent's household during the 180 days
9 prior to her death and were dependent on her for at least one half of their support.

10 6. No proceeding is now pending in California for the administration of the decedent's
11 estate.

12 7. I am the successor in interest to the Estate of SHARA LYNN TOWNE as defined in
13 section 377.11 of the *California Code of Civil Procedure* and succeed to the decedent's interests in this
14 action.

15 8. No other person has a superior right to commence this action or proceeding or to be
16 substituted for the decedent in any pending action or proceeding.

17
18 I declare, under penalty of perjury, under the laws of the State of California, that the foregoing
19 is true and correct, and that this Declaration was executed in Visalia, California.

20
21
22 Dated: 2-23-06



23 RICHARD TOWNE, individually and as Successor in Interest
24 to the Estate of SHARA LYNN TOWNE, deceased.

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address): Clarice J. Letizia, SBN 129331 Brian D. Chase, SBN 164109 Bisnar & Chase 1301 Dove Street, #120 Newport Beach, CA 92660 TELEPHONE NO.: _____ FAX NO. (Optional): _____ E-MAIL ADDRESS (Optional): _____ ATTORNEY FOR (Name): _____	FOR COURT USE ONLY FILED MAY 04 2006 FRESNO COUNTY SUPERIOR COURT By _____ DEPUTY
SUPERIOR COURT OF CALIFORNIA, COUNTY OF Fresno STREET ADDRESS: 1100 Van Ness MAILING ADDRESS: _____ CITY AND ZIP CODE: Fresno, CA 93724 BRANCH NAME: _____	
PLAINTIFF/PETITIONER: Richard Towne et al DEFENDANT/RESPONDENT: General Motors, et al.	
APPLICATION AND ORDER FOR APPOINTMENT OF GUARDIAN AD LITEM — CIVIL ☐ EX PARTE	CASE NUMBER: 050EC000759 MBS

Note: This form is for use in civil proceedings in which a party is a minor, an incapacitated person, or a person for whom a conservator has been appointed. A party who seeks the appointment of a guardian ad litem in a family law proceeding should use form FL-835. A party who seeks the appointment of a guardian ad litem in a probate proceeding should use form DE-350/GC-100. An individual may not act as a guardian ad litem unless he or she is represented by an attorney or is an attorney.

1. Applicant (name): Richard Towne is
 - a. ☐ the parent of (name): _____
 - b. ☐ the guardian of (name): _____
 - c. ☐ the conservator of (name): _____
 - d. ☐ a party to the suit.
 - e. ☒ the minor to be represented (if the minor is 14 years of age or older).
 - f. ☐ another interested person (specify capacity): _____

2. This application seeks the appointment of the following person as guardian ad litem (state name, address, and telephone number):
Richard Towne, 3018 E. Douglas, Visalia, CA 93292

3. The guardian ad litem is to represent the interests of the following person (state name, address, and telephone number):
Jeffrey Towne, 3018 E. Douglas, Visalia, CA 93292

4. The person to be represented is:
 - a. ☒ a minor (date of birth): 8/11/91
 - b. ☐ an incompetent person.
 - c. ☐ a person for whom a conservator has been appointed.

5. The court should appoint a guardian ad litem because:
 - a. ☐ the person named in item 3 has a cause or causes of action on which suit should be brought (describe):
 Wrongful death of his mother

☐ Continued on Attachment 5a.

PLAINTIFF/PETITIONER: <u>Richard Towne, et al</u>	CASE NUMBER:
DEFENDANT/RESPONDENT: <u>General Motors, et al.</u>	

5. b. ☐ more than 10 days have elapsed since the summons in the above-entitled matter was served on the person named in item 3, and no application for the appointment of a guardian ad litem has been made by the person identified in item 3 or any other person.
- c. ☐ the person named in item 3 has no guardian or conservator of his or her estate.
- d. ☐ the appointment of a guardian ad litem is necessary for the following reasons (*specify*):

☐ Continued on Attachment 5d.

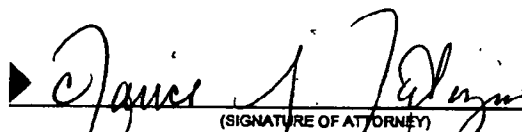
6. The proposed guardian ad litem's relationship to the person he or she will be representing is:

- a. ☒ related (*state relationship*): Father
- b. ☐ not related (*specify capacity*):

7. The proposed guardian ad litem is fully competent and qualified to understand and protect the rights of the person he or she will represent and has no interests adverse to the interests of that person. (*If there are any issues of competency or qualification or any possible adverse interests, describe and explain why the proposed guardian should nevertheless be appointed*):

☐ Continued on Attachment 7.

Clarice J. Letizia, SBN 129331
(TYPE OR PRINT NAME)

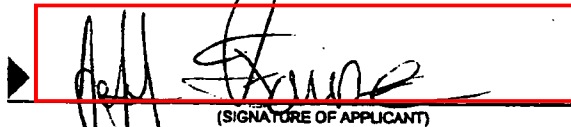
► 
(SIGNATURE OF ATTORNEY)

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: February 14, 2006

Jeffrey Towne

(TYPE OR PRINT NAME)

► 
(SIGNATURE OF APPLICANT)

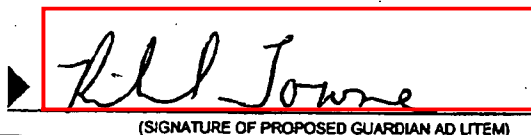
CONSENT TO ACT AS GUARDIAN AD LITEM

I consent to the appointment as guardian ad litem under the above petition.

Date: February 14, 2006

Richard Towne

(TYPE OR PRINT NAME)

► 
(SIGNATURE OF PROPOSED GUARDIAN AD LITEM)

ORDER ☒ EX PARTE

THE COURT FINDS that it is reasonable and necessary to appoint a guardian ad litem for the person named in item 3 of the application, as requested.

THE COURT ORDERS that (name): Richard Towne
is hereby appointed as the guardian ad litem for (name): Jeffrey Towne
for the reasons set forth in item 5 of the application.

Date: 5/2/06

M. BRUCE SMITH

JUDICIAL OFFICER

☐ SIGNATURE FOLLOWS LAST ATTACHMENT

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address): Clarice J. Letizia, SBN 129331 Brian D. Chase, SBN 164109 Bisnar & Chase 1301 Dove Street, #120 Newport Beach, CA 92660		FOR COURT USE ONLY FILED MAY 04 2006 FRESNO COUNTY SUPERIOR COURT By _____ DEPUTY
TELEPHONE NO.: _____ FAX NO. (Optional): _____ E-MAIL ADDRESS (Optional): _____ ATTORNEY FOR (Name): _____		
SUPERIOR COURT OF CALIFORNIA, COUNTY OF Fresno STREET ADDRESS: 1100 Van Ness MAILING ADDRESS: _____ CITY AND ZIP CODE: Fresno, CA 93724 BRANCH NAME: _____		
PLAINTIFF/PETITIONER: Richard Towne, et al DEFENDANT/RESPONDENT: General Motors, et al.		
APPLICATION AND ORDER FOR APPOINTMENT OF GUARDIAN AD LITEM — CIVIL ☐ EX PARTE		CASE NUMBER: 056EC600759 MBS

Note: This form is for use in civil proceedings in which a party is a minor, an incapacitated person, or a person for whom a conservator has been appointed. A party who seeks the appointment of a guardian ad litem in a family law proceeding should use form FL-935. A party who seeks the appointment of a guardian ad litem in a probate proceeding should use form DE-350/GC-100. An individual may not act as a guardian ad litem unless he or she is represented by an attorney or is an attorney.

1. Applicant (name): Richard Towne is
 - a. ☐ the parent of (name):
 - b. ☒ the guardian of (name): Jessica Towne
 - c. ☐ the conservator of (name):
 - d. ☐ a party to the suit.
 - e. ☐ the minor to be represented (if the minor is 14 years of age or older).
 - f. ☐ another interested person (specify capacity):
2. This application seeks the appointment of the following person as guardian ad litem (state name, address, and telephone number):
 Richard Towne, 3018 E. Douglas, Visalia, CA 93292
3. The guardian ad litem is to represent the interests of the following person (state name, address, and telephone number):
 Jessica Towne, 3018 E. Douglas, Visalia, CA 93292
4. The person to be represented is:
 - a. ☒ a minor (date of birth): 4/24/93
 - b. ☐ an incompetent person.
 - c. ☐ a person for whom a conservator has been appointed.
5. The court should appoint a guardian ad litem because:
 - a. ☐ the person named in item 3 has a cause or causes of action on which suit should be brought (describe):
 Wrongful death of her mother

☐ Continued on Attachment 5a.

PLAINTIFF/PETITIONER: <u>Richard Towne, et al</u>	CASE NUMBER:
DEFENDANT/RESPONDENT: <u>General Motors, et al.</u>	

5. b. ☐ more than 10 days have elapsed since the summons in the above-entitled matter was served on the person named in item 3, and no application for the appointment of a guardian ad litem has been made by the person identified in item 3 or any other person.

c. ☐ the person named in item 3 has no guardian or conservator of his or her estate.

d. ☐ the appointment of a guardian ad litem is necessary for the following reasons (specify):

☐ Continued on Attachment 5d.

6. The proposed guardian ad litem's relationship to the person he or she will be representing is:

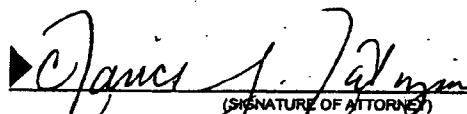
a. ☒ related (state relationship): Father

b. ☐ not related (specify capacity):

7. The proposed guardian ad litem is fully competent and qualified to understand and protect the rights of the person he or she will represent and has no interests adverse to the interests of that person. (If there are any issues of competency or qualification or any possible adverse interests, describe and explain why the proposed guardian should nevertheless be appointed):

☐ Continued on Attachment 7.

Clarice J. Letizia, SBN 129331
(TYPE OR PRINT NAME)


(SIGNATURE OF ATTORNEY)

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: February 14, 2006

Richard Towne
(TYPE OR PRINT NAME)


(SIGNATURE OF APPLICANT)

CONSENT TO ACT AS GUARDIAN AD LITEM

I consent to the appointment as guardian ad litem under the above petition.

Date:

Richard Towne
(TYPE OR PRINT NAME)

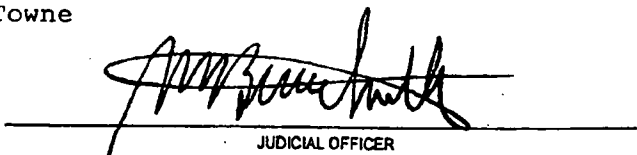

(SIGNATURE OF PROPOSED GUARDIAN AD LITEM)

ORDER ☒ EX PARTE

THE COURT FINDS that it is reasonable and necessary to appoint a guardian ad litem for the person named in item 3 of the application, as requested.

THE COURT ORDERS that (name): Richard Towne
is hereby appointed as the guardian ad litem for (name): Jessica Towne
for the reasons set forth in item 5 of the application.

Date: 5/10/06


JUDICIAL OFFICER

☐ SIGNATURE FOLLOWS LAST ATTACHMENT

BISNAR & CHASE LLP

ONE NEWPORT PLACE
1301 DOVE ST., SUITE 120
NEWPORT BEACH, CA 92660
PHONE: (949) 752-2999
FACSIMILE: (949) 752-2777

BRIAN D. CHASE, State Bar No. 164109
JERRY N. GANS, State Bar No. 113435
CLARICE J. LETIZIA, State Bar No. 129331

FILED

MAR 09 2006

FRESNO COUNTY SUPERIOR COURT
By _____ NAG DEPUTY

Attorneys for Plaintiffs, **RICHARD TOWNE**,
individually and as successor in interest to the estate
of **SHARA TOWNE**, deceased; **AARON BURDGE**
and **HOLLI BURDGE**, minors, by and through their
Guardian ad Litem, **JOHNNY BURDGE**, and
ANDREW BURDGE

SUPERIOR COURT OF CALIFORNIA

COUNTY OF FRESNO

RICHARD TOWNE individually and as successor
in interest to the estate of **SHARA LYNN**
TOWNE, deceased; **JEFFREY TOWNE** and
JESSICA TOWNE, minors, by and through their
Guardian ad Litem, **RICHARD TOWNE**; **AARON**
BURDGE and **HOLLI BURDGE**, minors, by and
through their Guardian ad Litem, **JOHNNY**
BURDGE; and **ANDREW BURDGE**,

Plaintiffs,

vs.

GENERAL MOTORS CORPORATION;
SATURN CORPORATION which will do
business in California as **SATURN MOTOR CAR**
CORPORATION; **HERWALDT AUTOMOTIVE**
GROUP, INC. dba **SATURN OF FRESNO**; **TRW**
AUTOMOTIVE HOLDINGS CORP; **TRW**
VEHICLE SAFETY SYSTEMS, INC; **TAKATA**
SEAT BELTS, INC; and DOES 1 to 20, inclusive,

Defendants.

CASE NO: **06-09-00759**

**COMPLAINT FOR DAMAGES FOR
WRONGFUL DEATH; SURVIVAL
ACTION; DEMAND FOR JURY TRIAL**

- (1) Strict Product Liability
- (2) Negligent Product Liability

This case has been assigned to
Judge M. Bruce Smith for all purposes

Come now, Plaintiffs, **RICHARD TOWNE**, individually and as successor in interest to the
estate of **SHARA LYNN TOWNE**, deceased; **JEFFREY TOWNE** and **JESSICA TOWNE**, minors,
by and through their Guardian ad Litem, **RICHARD TOWNE**; **AARON BURDGE** and **HOLLI**

1 **BURDGE** minors, by and through their Guardian ad Litem, **JOHNNY BURDGE**; and **ANDREW**
2 **BURDGE** and for causes of action against defendants, allege as follows.

3 **COMMON ALLEGATIONS TO ALL CAUSES OF ACTION**

4 1. At all times herein mentioned prior to her death, **SHARA LYNN TOWNE**, deceased,
5 is and was a citizen and resident of the County of Tulare, State of California.

6 2. At all times herein mentioned, Plaintiff, **RICHARD TOWNE**, was and is an individual
7 and a resident of the County of Tulare, State of California, and at all times herein mentioned, was and
8 is the surviving spouse and heir of **SHARA LYNN TOWNE**, deceased. Plaintiff, **RICHARD TOWNE**,
9 brings this action on behalf of the Estate of **SHARA LYNN TOWNE**, deceased, as a survival action,
10 pursuant to *Code of Civil Procedure* §§ 377.30 *et. seq.*

11 3. At all times herein mentioned, Plaintiffs, **AARON BURDGE**; **HOLLI BURDGE**; and
12 **ANDREW BURDGE** were and are the natural children and heirs of the decedent, **SHARA LYNN**
13 **TOWNE**.

14 4. At all times herein mentioned, Plaintiffs, **JEFFREY TOWNE** and **JESSICA TOWNE**,
15 were and are the step children and heirs of the decedent, **SHARA LYNN TOWNE**. At all times herein
16 mentioned, plaintiffs, **JEFFREY TOWNE** and **JESSICA TOWNE** resided in the decedent's household
17 during the 180 days prior to her death and were dependent on the decedent for at least one half of their
18 support.

19 5. At all times herein mentioned, Plaintiff, **JEFFREY TOWNE**, is and was a minor, date
20 of birth, **8-11-91** and brings this action by and through his Guardian ad Litem, plaintiff, **RICHARD**
21 **TOWNE**. Plaintiff **JEFFREY TOWNE** was and is a resident of the County of Tulare, State of
22 California.

23 6. At all times herein mentioned, Plaintiff, **JESSICA TOWNE**, is and was a minor, date
24 of birth, **4-24-93** and brings this action by and through her Guardian ad Litem, plaintiff, **RICHARD**
25 **TOWNE**. Plaintiff, **JESSICA TOWNE**, was and is a resident of the County of Tulare, State of
26 California.

27 7. At all times herein mentioned, Plaintiff, **AARON BURDGE**, is and was a minor, date
28 of birth, **2-20-91**, and brings this action by and through his Guardian ad Litem, plaintiff, **JOHNNY**

1 **BURDGE** Plaintiff **AARON BURDGE** was and is a resident of the County of Tulare, State of
2 California.

3 8. At all times herein mentioned, Plaintiff, **HOLLI BURDGE**, is and was a minor, date
4 of birth **9-2-87** and brings this action by and through her Guardian ad Litem, plaintiff, **JOHNNY**
5 **BURDGE**. Plaintiff, **HOLLI BURDGE**, was and is a resident of the County of Tulare, State of
6 California.

7 9. At all times herein mentioned, Plaintiff, **ANDREW BURDGE**, is and was a citizen of
8 the County of Tulare, State of California.

9 10. Plaintiffs, **RICHARD TOWNE** individually and as successor in interest to the estate
10 of **SHARA LYNN TOWNE**, deceased; **JEFFREY TOWNE** and **JESSICA TOWNE**, by and through
11 their Guardian ad Litem, **RICHARD TOWNE; AARON BURDGE and HOLLI BURDGE**, by and
12 through their Guardian ad Litem, **JOHNNY BURDGE; and ANDREW BURDGE** bring this action
13 as a wrongful death action, pursuant to *Code of Civil Procedure* §§377.60 *et. seq.*

14 11. At all times mentioned herein, Defendants, GENERAL MOTORS CORPORATION;
15 SATURN CORPORATION which will do business in California as SATURN MOTOR CAR
16 CORPORATION; HERWALDT AUTOMOTIVE GROUP, INC dba SATURN OF FRESNO; TRW
17 AUTOMOTIVE HOLDINGS CORP., TRW VEHICLE SAFETY SYSTEMS, INC; TAKATA SEAT
18 BELTS, INC., and DOES 1 to 20, inclusive, were and are engaged in the business of manufacturing,
19 fabricating, designing, testing, assembling, distributing, selling, inspecting, servicing, repairing,
20 marketing, warranting, leasing, renting, selling, retailing, wholesaling and advertising a certain subject
21 2004 Silver four door Saturn Ion, California License Plate No. **5ETY772**, Vehicle Identification No.
22 **1G8AF52F94Z122157**, (hereinafter the "SUBJECT VEHICLE") and each and every component part
23 thereof, which defendants knew, or in the exercise of reasonable care should have known, would be
24 used without inspection for defects in its parts, mechanisms or design, for use in the State of California
25 and elsewhere.

26 12. At all times mentioned in this Complaint, Defendant, GENERAL MOTORS
27 CORPORATION was and is organized and existing under the laws of the State of Delaware, with a
28 principal places of business in the City of Detroit, Michigan, and the Cities of Ventura, Sante Fe

1 Springs and Los Angeles, California, and was authorized and qualified to do business and was doing
2 business in the City and County of Fresno, in the State of California. Defendant GENERAL MOTORS
3 CORPORATION was and is engaged in the business of manufacturing, fabricating, designing,
4 researching, testing, assembling, distributing, selling, inspecting, servicing, repairing, marketing,
5 warranting, selling, retailing, wholesaling, advertising and constructing automobiles, trucks, vans and
6 sports utility vehicles (SUVs), to the general public, for use for business and recreation, and at all
7 times knew or reasonably should have known that such vehicles would be used by the public at large
8 without inspection for defects. Defendant, GENERAL MOTORS CORPORATION, is and was a
9 citizen of the States of Delaware, Michigan and California.

10 13. Defendant, SATURN CORPORATION, which will do business in California as
11 SATURN MOTOR CAR CORPORATION, is and was a corporation, organized and existing under
12 the laws of the State of Delaware, with its principal place of business in Spring Hill, Tennessee.
13 Defendant, SATURN CORPORATION, which will do business in California as SATURN MOTOR
14 CAR CORPORATION was authorized and qualified to do business and was doing business in the City
15 and County of Fresno, in the State of California. Defendant, SATURN CORPORATION, which will
16 do business in California as SATURN MOTOR CAR CORPORATION is and was a citizen of the
17 States of Delaware and Tennessee.

18 14. The SUBJECT VEHICLE was purchased from and therefore, placed in the stream of
19 commerce by defendant, HERWALDT AUTOMOTIVE GROUP, INC. dba SATURN OF FRESNO.
20 Defendant, HERWALDT AUTOMOTIVE GROUP, INC. dba SATURN OF FRESNO, is and was a
21 Delaware Corporation, with its principal place of business in Fresno, California. Defendant,
22 HERWALDT AUTOMOTIVE GROUP, INC. dba SATURN OF FRESNO, is and was a citizen of
23 the States of Delaware and California.

24 15. Defendant TRW AUTOMOTIVE HOLDINGS COPR, is and was, at all relevant times,
25 the parent corporation for the coordination of TRW subsidiaries, including but not limited to
26 defendant, TRW VEHICLE SAFETY SYSTEMS, INC., its vehicle occupant restraint systems
27 subsidiary. Defendant TRW AUTOMOTIVE HOLDINGS COPR. is and was a corporation, organized
28 and existing under the laws of the State of Delaware, with its principal place of business in Livonia,

1 Michigan and was doing business in the County of Fresno, State of California. Defendant TRW
2 AUTOMOTIVE HOLDINGS COPR. is and was a citizen of the States of Delaware and Michigan.

3 16. Defendant TRW AUTOMOTIVE HOLDINGS COPR. is and was engaged in the
4 business of designing, manufacturing, researching, testing, distributing, advertising, constructing, and
5 selling integrated vehicle control and driver assist systems, including but not limited to braking
6 systems, steering systems, suspension systems, occupant safety systems, electronics, engine
7 components, fastening systems and aftermarket replacement parts and services. Defendant, TRW
8 AUTOMOTIVE HOLDINGS CORP. supplied the steering wheel and those safety systems installed
9 in the SUBJECT VEHICLE, including but not limited to the air bags and seat belt buckles and
10 restraints systems, as well as others used in automobiles and trucks sold by SATURN and/or
11 GENERAL MOTORS CORPORATION and used by the general public for business and recreation,
12 and all times knew or reasonably should have known that such steering wheel, air bags, seat belt
13 buckles and restraints in such vehicles would be used by the public at large without inspection for
14 defects. At all times relevant herein, TRW AUTOMOTIVE HOLDINGS CORP. (and its subsidiaries)
15 designed, manufactured, researched, tested, distributed, advertised, constructed, and sold the steering
16 wheel, air bags, seat belt buckles, tongues and restraints systems installed by SATURN and/or
17 GENERAL MOTORS CORPORATION in the SUBJECT VEHICLE.

18 17. Defendant TRW VEHICLE SAFETY SYSTEMS, INC. ("TRW VSSI"), is and was,
19 at all times relevant herein, a corporation organized and existing under the laws of the State of
20 Delaware, with its principal place of business in Washington, Michigan, and was doing business in
21 the County of Fresno, State of California. Defendant TRW VEHICLE SAFETY SYSTEMS, INC. is
22 and was a citizen of the States of Delaware and Michigan.

23 18. Defendant TRW VEHICLE SAFETY SYSTEMS, INC. ("TRW VSSI"), is and was,
24 at all times relevant herein, engaged in the business of designing, manufacturing, researching, testing,
25 distributing, advertising, constructing, and selling vehicle safety systems, including but not limited to
26 those safety systems installed in the SUBJECT VEHICLE, including but not limited to the air bags
27 and seat belt buckles and restraints systems for use in automobiles and trucks sold by SATURN and
28 GENERAL MOTORS CORPORATION and used by the general public for business and recreation,

1 and all times knew or reasonably should have known that such buckles and restraint systems in such
2 vehicles would be used by the public at large without inspection for defects. At all times relevant
3 herein, TRW VSSI designed, manufactured, researched, tested, distributed, advertised, constructed,
4 and sold the seat belt buckles, tongues and restraints systems installed by SATURN and/or GENERAL
5 MOTORS CORPORATION in the SUBJECT VEHICLE.

6 19. Defendant, TAKATA SEAT BELTS, INC. is a Japanese owned automotive parts
7 supplier headquartered in the United States in San Antonio, Texas, and was authorized and qualified
8 to do business and was doing business in the City and County of Fresno, in the State of California.
9 Plaintiffs are informed and believe and allege thereon that TAKATA SEAT BELTS, INC. is and was,
10 at all times relevant herein, a corporation organized and existing under the laws of the State of Texas,
11 with its headquarters and principal place of business in San Antonio, Texas. The company
12 manufactures and supplies seat belt systems and related components, steering wheels, airbag modules
13 and inflators, electronic sensor units, electronic modules, clock springs, and a wide range of interior
14 trim components. Plaintiffs are informed and believe and allege thereon, that Defendant, TAKATA
15 SEAT BELTS, INC. designed and manufactured the seat belt system installed in the SUBJECT
16 VEHICLE and in automobiles and trucks sold by SATURN and/or GENERAL MOTORS
17 CORPORATION and used by the general public for business and recreation, and all times knew or
18 reasonably should have known that such restraint systems in such vehicles would be used by the public
19 at large without inspection for defects.

20 20. At all times mentioned in this complaint, Defendants, DOES 1 through 20, and each
21 of them, were individuals, corporations, partnerships, and/or associations residing in and/or authorized
22 to and/or doing business in the State of California.

23 21. The true names and/or capacities, whether individual, corporate associate, governmental
24 or otherwise of defendants named herein as Does 1 through 20, inclusive and each of them are
25 unknown to the Plaintiffs, who therefore sue said defendants by such fictitious names. When the true
26 names and or capacities of said defendants are ascertained, the Plaintiffs will seek leave of this Court
27 to amend the Complaint accordingly.

28 22. The Plaintiffs are informed and believe, and based thereupon allege, that each defendant

1 designated herein as a Doe was responsible, negligently or in some other actionable manner, for the
2 events and happenings herein referred to which proximately caused the damages to the Plaintiffs as
3 hereinafter alleged, either through said defendant's own negligence or through the conduct of its
4 agents, servants, employees or representatives in some other manner.

5 23. Plaintiffs are informed and believe and based thereupon allege that at all times
6 mentioned herein the Defendants and each of them were the agents, servants, employees,
7 representatives and/or joint venturers of their co-defendants and were, as such acting within the course,
8 scope and authority of said agency, services, employment, representation and/or joint venture in that
9 each and every Defendant as aforesaid when acting as principal, and authorized, approved and/or
10 ratified such conduct, and were further negligent in the selection, hiring and retention of each and
11 every other defendant as an agent, servant, employee, representative and/or joint venturer.

12 24. On or about July 4, 2004, on Noble Street, in an unincorporated road in the City of
13 Visalia, County of Tulare, State of California, plaintiffs' decedent, SHARA LYNN TOWNE, was
14 driving a 2004 Silver, four door Saturn Ion, California License Number 5ETY772 when it drove off
15 of the highway and collided head on with a California Edison Company power pole. When the
16 SUBJECT VEHICLE collided head on with the power pole, the supplemental restraint system (airbag
17 system) was within the "must fire" criteria for the SUBJECT VEHICLE, yet the airbag failed to
18 deploy, causing severe personal and traumatic and mortal injuries to the decedent, SHARA LYNN
19 TOWNE.

20 25. The Decedent, SHARA LYNN TOWNE, survived for a period of time following the
21 initial injuries sustained in such accident, but thereafter died at the scene of the incident prior to the
22 arrival of emergency personnel.

23 **FIRST CAUSE OF ACTION - STRICT PRODUCT LIABILITY**

24 (Against All Defendants)

25 26. Plaintiffs incorporate by reference, as though fully set forth herein, paragraphs 1
26 through 25 above.

27 27. At all times mentioned herein, at the time that the SUBJECT VEHICLE left the control
28 of the Defendants, GENERAL MOTORS CORPORATION, SATURN CORPORATION which will

1 do business in California as SATURN MOTOR CAR CORPORATION; HERWALDT
2 AUTOMOTIVE GROUP, INC. dba SATURN OF FRESNO; TRW AUTOMOTIVE HOLDINGS
3 CORP; TRW VEHICLE SAFETY SYSTEMS, INC; TAKATA SEAT BELTS, INC. and DOES 1
4 through 20, inclusive, each of the defendants knew that the SUBJECT VEHICLE was to be and was
5 in fact purchased and used without inspection for defects by the users of that vehicle, including but
6 not limited to the Plaintiffs and Plaintiff's decedent.

7 28. The SUBJECT VEHICLE and each of its component parts was manufactured, designed,
8 assembled, packaged, tested, fabricated, analyzed, inspected, merchandised, marketed, distributed,
9 labeled, advertised, promoted, sold, supplied, repaired, adjusted, selected and used with inherent vices
10 and defects both in design and manufacturing and by failure to warn (hereinafter "SUBJECT
11 DEFECTS") which made it dangerous, hazardous and un-safe both for its intended use and/or for
12 reasonably foreseeable misuses because its occupant restraint system, supplemental restraint system,
13 and the front driver's side manual seat track adjustment mechanism are and were inadequately
14 designed and constructed and failed to provide the degree of occupant restraint, protection, and safety
15 a reasonable consumer would expect in foreseeable accidents occurring in the real world environment
16 of its expected use.

17 29. Plaintiffs are informed and believe and thereon allege that the SUBJECT DEFECTS
18 included, but were not limited to the following.

19 A. Defective and unsafe restraint systems, including but not limited to seat
20 buckles, seat belts, shoulder belts and retractors, defects including but not
21 limited to lack of pre-tensioners and retractor failure, which defendants and
22 each of them knew and were aware would fail to restrain an occupant in the
23 SUBJECT VEHICLE in the event of a front impact crash, and which, in this
24 case, failed to restrain the decedent in the SUBJECT VEHICLE and which
25 caused her to hit her chest on the steering wheel, causing her severe injury and
26 death. The occupant restraint system retractor was defective in that it permitted
27 or allowed excessive pre- and inter-accident belt slack and spoolout during
28 foreseeable collisions occurring in the real world, as the crash that it the subject

1 matter of this lawsuit.

2 B. Defective and unsafe supplemental restraint system, which failed to deploy
3 during the incident, including but not limited to the following defects. (1)
4 Inadequate sensor numbers and locations. Defendants used fewer sensors than
5 necessary, and/or cheap sensors and/or sensors designed for other uses, which
6 led to defects that caused the remaining sensors to be overly sensitive or to be
7 unable to timely detect a collision or to fail to detect a collision. Defendants
8 failed to adequately test the numbers, calibration and location of sensors in
9 foreseeable crash scenarios which also resulted in the dangerously defective
10 sensors systems. (2) Defectively designed sensing and diagnostic module
11 (SDM) which failed to deploy the air bag in this front impact collision. (3)
12 Defendants made mistakes in the number and location of gas vents and in the
13 pattern used to fold the air bag. (4) Inferior Algorithms: The newer airbag
14 systems such as the one used in the SUBJECT VEHICLE use electronic
15 sensors which rely on software to analyze deceleration data to determine if and
16 when to deploy the airbag. These software sub-routines, referred to as
17 algorithms, were inadequate algorithms and caused the airbags to fail to fire or
18 deploy at all. (5) Failure to Incorporate Technology. Defendants failed to use
19 systems which can identify the severity of the crash and then deploy the air bag
20 with differing power levels depending upon the energy produced in the crash.
21 (6) Defendants failed to incorporate pretension devices.

22 C. No warnings and/or inadequate warnings regarding all of the above defects.

23 30. At all times herein mentioned, Defendants, and each of them, knew and intended that
24 the SUBJECT VEHICLE would be purchased and operated by members of the general public who
25 would rely on Defendants to transmit any relevant warnings about said vehicles.

26 31. Said product and each of its component parts and/or after market parts and/or
27 installation guides, was unsafe for its intended use and reasonably foreseeable misuses by reason of
28 defects in its design and/or manufacturing and/or failure to warn by said Defendants, and each of them,

1 in that when said SUBJECT VEHICLE and each of its component parts and/or after market parts
2 and/or installation guides, was used by the plaintiffs' decedent, on or about July 4, 2004, as intended
3 or in a reasonable foreseeable manner, during a reasonably foreseeable front impact crash, the
4 SUBJECT VEHICLE was dangerous and defective in that the occupant restraint system permitted or
5 allowed excessive pre and inter accident belt slack and spool out during the accident sequence such
6 that the decedent was thrown into the steering wheel; the supplemental restraint system failed to
7 deploy during the accident sequence thereby further failing to protect the decedent from being thrown
8 into the steering wheel; and the seat track adjustment mechanism failed to keep the driver's seat in a
9 fixed position during the accident, subjecting the decedent to serious, enhanced, second-collision
10 personal and fatal injuries, legally causing serious personal injuries and death to plaintiffs' Decedent,
11 legally resulting in Plaintiffs' damages as set forth herein.

12 32. As a direct and legal result of the conduct of defendants, and each of them, and the
13 defects inherent in the vehicle, severe and fatal injuries were caused thereby to plaintiffs' decedent,
14 **SHARA LYNN TOWNE**, legally resulting in Plaintiffs' special and general damages in a sum in
15 excess of the minimum subject matter jurisdiction of this Superior Court, according to proof at trial.

16 33. As a direct and legal result of the conduct of defendants, and each of them and the
17 defects inherent in the vehicle, the occupant restraint system permitted or allowed excessive pre and
18 inter accident belt slack and spool out during the accident sequence such that the decedent was thrown
19 into the steering wheel; the supplemental restraint system failed to deploy during the accident sequence
20 thereby further failing to protect the decedent from being thrown into the steering wheel; the seat track
21 adjustment mechanism failed to keep the driver's seat in a fixed position during the accident,
22 subjecting the decedent to serious, enhanced, second-collision personal and fatal injuries, causing
23 severe and fatal personal injuries to Plaintiffs' decedent, and legally resulting in plaintiffs' damages,
24 in a sum in excess of the minimum jurisdiction of this Superior Court, according to proof at trial.

25 34. As a direct and legal result of the conduct of defendants, and each of them, and the
26 defects inherent in the vehicle, and each of its component parts, and/or after market parts and/or
27 installation guides, plaintiffs have incurred funeral and burial expenses comprising economic damages
28 in a sum to be established according to proof at trial.

1 **ALLEGATIONS SUPPORTING EXEMPLARY DAMAGES PRAYER**
2 (Only by Plaintiff, **RICHARD TOWNE**, only as Successor in Interest to the Estate of **SHARA**
3 **LYNN TOWNE**, only against Defendants, GENERAL MOTORS CORPORATION;
4 SATURN CORPORATION which will do business in California as SATURN MOTOR CAR
5 CORPORATION, and DOES 1 -20, inclusive)

6 35. Plaintiffs are further informed and believe and allege thereon that defendants,
7 GENERAL MOTORS CORPORATION; SATURN CORPORATION which will do business in
8 California as SATURN MOTOR CAR CORPORATION and DOES 1-20 inclusive, intentionally
9 engaged in conduct which, with respect to the SUBJECT DEFECTS, Plaintiffs allege was the legal
10 cause of their losses, damages, injuries and harm, exposed Plaintiffs' decedent and other users of the
11 SUBJECT VEHICLE to serious potential danger known to the Defendants in order to advance the
12 Defendants' pecuniary interests and thus acted with a conscious disregard for the safety of the
13 Plaintiffs' and plaintiffs' decedent and other users of the SUBJECT VEHICLE, warranting an award
14 of exemplary damages against Defendants, pursuant to *Civil Code* § 3294(c)(1), and the rule
15 enunciated in *Ford Motor Co. v. Home Ins. Co.* (1981) 116 Cal. App.3d 374, 381-382 and *PPG*
16 *Industries, Inc. v. Transamerica Ins. Co.* (1999) 20 Cal.4th 310. The facts supporting the Defendants'
17 intentional conduct which exposed plaintiffs and Plaintiffs' decedent and other users of the SUBJECT
18 VEHICLE to serious potential danger known to the Defendants in order to advance the Defendants'
19 pecuniary interests, are on information and belief, as follows.

20 36. Since 1973, when defendant, GENERAL MOTORS CORPORATION first introduced
21 air bag-equipped cars, defendants have had access to the crash data using its onboard collision sensing
22 and recording devices. Defendant, GENERAL MOTORS CORPORATION expanded the data
23 downloaded to permanent memory in the air bag sensing and diagnostic module (SDM) at deployment
24 or in a near deployment collision. The amount of data recorded has been expanded with time and
25 technology. Since 1999, defendant had the capability to record pre-crash data as it was included with
26 some 1999 GM Vehicles. In all 1994 and newer vehicles manufactured by Saturn, such crash data in
27 real world crash situations was available to defendants.

28 37. In addition, the National Highway Traffic and Safety Administration (NHTSA)
performs crash testing to determine compliance with Federal Motor Vehicle Safety Standard
(FMVSS) 208, which required all passenger vehicles to be equipped with air bags, effective 9-1-97.

1 Such data was also readily available to defendants.

2 38. Defendants GENERAL MOTORS CORPORATION; SATURN CORPORATION
3 which will do business in California as SATURN MOTOR CAR CORPORATION and DOES 1-20
4 inclusive, and each of them, have known and been placed upon notice contemporaneously as a result
5 of crash data, in-house testing, NHTSA crash testing, field-service reports, consumer/customer
6 lawsuits/claims, and published studies that actual users and passengers of defendants' vehicles that
7 include supplemental restraint systems (air bags) were being seriously injured and killed as a result
8 of the defective systems. As early as 1999, Defendant, GENERAL MOTORS CORPORATION had
9 notice and knowledge of its defective air bag systems when Mark N. Silvestri filed suit in the United
10 States District Court, Case No. 99-2142, because his 1995 Chevrolet Monte Carlo hit a utility pole
11 with the front center of his vehicle, similar to the INCIDENT that occurred in this case. The vehicle's
12 air bag did not deploy and although he was wearing his seatbelt, he sustained severe facial lacerations
13 and bone fractures and permanent disfigurement.

14 39. Defendants have also been notified of the defective air bag systems through the use of
15 their in house reporting system. In 2001, defendant SATURN was notified that a seat belted user of
16 its Saturn in Poughkeepsie, New York, was involved in a front impact accident that totaled the car,
17 causing a head injury, yet the air bags never deployed. Also in 2001, defendants GM and SATURN
18 were notified that an owner of a 1993 Saturn SL2, in New Castle, Delaware, was in a chain reaction
19 collision, in which her car was the third one hit from behind and forced her Saturn into the back of a
20 2000 Ford Expedition. All three passengers in the car sustained injuries when the hood of the Saturn
21 became dislodged and smashed into the windshield, yet the driver's air bag did not deploy in this
22 frontal impact collision.

23 40. In addition, Defendants were notified of their defective air bag systems by another
24 Saturn owner, of Bay Point, California, in August of 2002, who was involved in a violent collision on
25 Interstate 40, near Needles, California. Again, the occupants had their seat belts on, yet the air bags
26 never deployed, and the occupants sustained serious personal injuries. Therefore, in addition to the
27 crash data available in all 1994 and newer vehicles manufactured by GM and SATURN, which crash
28 data was readily available to defendants from the onboard collision sensing and recording devices,

1 such crash data was also provided to defendants regarding real world crash situations. Yet defendants
2 ignored this data establishing that these safety systems did not operate properly to restrain and protect
3 occupants safely in foreseeable accidents occurring in the real world environment of the SUBJECT
4 VEHICLE's expected use.

5 41. The GM electronic air bag SDMs are defectively designed in that they do not look at
6 vehicle speed to determine an air bag deployment command. The GM air bag SDM looks for a change
7 in acceleration on the vehicle 'X' axis to determine deployment criteria. Therefore, a GM vehicle could
8 be stopped or moving very slowly, be in an accident event, and deploy the air bags unnecessarily.
9 Similarly, a violent frontal impact could occur such as the SUBJECT INCIDENT, and the air bag not
10 deploy at all because the electronic air bag SDMs did not look to vehicle speed to determine an air bag
11 deployment command. Defendants have known for years that the systems were defective, and in spite
12 of the known risk of serious and fatal injuries, and death, defendants chose to ignore the inherent safety
13 problem, and took no action to prevent such debilitating injuries and deaths, because of concern about
14 cost penalties. Defendants' decision to save money at the expense of innocent human life and pain and
15 suffering constitutes, despicable conduct and callous disregard for the safety of the motoring public,
16 including the decedent, and the plaintiffs herein. Defendants have failed to act for years and have
17 conspired to resist obvious major opportunities to improve motor vehicle safety by improving the air
18 bag design of their vehicles, all to advance their own pecuniary interests.

19 42. The actions of said Defendants and each of them, as herein described, were thus
20 undertaken with a willful and conscious disregard for the rights and safety of consumers and users of
21 said Defendants' vehicles, including the SUBJECT VEHICLE, in order to advance the pecuniary gains
22 of the Defendants and each of them, and were despicable because such aforesaid conduct would and
23 does kill people, including but not limited to Plaintiffs' decedent, during the course of the accident
24 which is the subject of this lawsuit.

25 43. The actions of said Defendants and each of them, as described above, were thus
26 undertaken with a willful and conscious disregard for the rights and safety of consumers and users of
27 said Defendants' vehicles, including the SUBJECT VEHICLE, in order to advance the pecuniary gains
28 of the Defendants and each of them, and were despicable because such aforesaid conduct would and

1 does kill people, including but not limited to Plaintiffs' decedent, during the course of the accident
2 which is the subject of this lawsuit.

3 44. Plaintiffs further allege that the conduct of the defendants was undertaken with the
4 result that the SUBJECT VEHICLE's ultimate defects in its design and production were fully intended
5 by the Defendants to reside therein. Plaintiffs are informed and believe that the decisions made by the
6 defendants and each of them to design and manufacture the SUBJECT VEHICLE with its defective
7 restraint system components, defective supplemental restraint system components, and defective seat
8 tracks, without any or inadequate warnings, all in the defective and dangerous manner as alleged
9 herein, were made by corporate management of the defendants and each of them, by the product of
10 corporate policy, in that such major and strategic design and manufacturing decisions, by virtue of the
11 corporate structure of the defendants and each of them, could be made only at the level of corporate
12 management, as the product of corporate policy, given the substantial capitalization requirements and
13 risks associated with such high level design and manufacturing decisions, across an entire vehicle
14 platform line for the SUBJECT VEHICLE, such that they were and are the product of the entire
15 corporate management and corporate policy of the defendants with respect to the conscious, willful
16 and disregard of public safety for defendants' pecuniary gain regarding the design, manufacture,
17 production, marketing and sale of the SUBJECT VEHICLE.

18 45. As a direct and proximate result of the aforementioned conduct of Defendants and each
19 of them, an award of exemplary and punitive damages against Defendants, GENERAL MOTORS
20 CORPORATION; SATURN CORPORATION which will do business in California as SATURN
21 MOTOR CAR CORPORATION and DOES 1 through 20, and each of them is proper and appropriate
22 to punish said Defendants and to deter such conduct in the future.

23 SECOND CAUSE OF ACTION

24 (Negligence [Product Liability] against all Defendants)

25 46. Plaintiffs incorporate, repeat and re-allege each and every allegation in paragraphs 1
26 through 47, above, and, incorporate the same by reference as though set forth in detail herein.

27 47. At all times mentioned, defendants and each of them, had a duty to properly
28 manufacture, design, assemble, package, test, fabricate, analyze, inspect, merchandise, market,

1 distribute, label, advertise, promote, sell, supply, warn, select, inspect and repair the SUBJECT
2 VEHICLE and each of its component parts and/or aftermarket parts and/or installation guides, so that
3 it would provide a reasonable degree of occupant protection and safety during foreseeable collisions
4 occurring in the real world highway environment of its expected use. The SUBJECT VEHICLE'S
5 occupant restraint system, supplemental restraint system, and the front driver's side seat track
6 adjustment mechanism are and were inadequately designed and constructed and failed to provide the
7 degree of occupant restraint, protection, and safety a reasonable consumer would expect in foreseeable
8 accidents occurring in the real world environment of its expected use. In particular, the occupant
9 restraint system permitted or allowed excessive pre and inter accident belt slack and spool out during
10 the accident sequence such that the decedent was thrown into the steering wheel; the supplemental
11 restraint system failed to deploy during the accident sequence thereby further failing to protect the
12 decedent from being thrown into the steering wheel; and the seat track adjustment mechanism failed
13 to keep the driver's seat in a fixed position during the accident, subjecting the decedent to serious,
14 enhanced, second-collision personal and fatal injuries.

15 48. At all times mentioned, defendants and each of them and DOES 1 through 100 knew,
16 or in the exercise of reasonable care should have known that the SUBJECT VEHICLE and each of its
17 component parts and/or aftermarket parts and/or installation guides was not properly manufactured,
18 designed, assembled, packaged, tested, fabricated, analyzed, inspected, merchandised, marketed,
19 distributed, labeled, advertised, promoted, sold, supplied, leased, rented, repaired, selected and
20 provided inadequate warnings for the use and purpose for which it was intended and it was likely to
21 injure the person who used said product, each of its component parts and/or aftermarket parts and/or
22 installation guides.

23 49. Defendants, and each of them, so negligently and carelessly, manufactured, designed,
24 assembled, packaged, tested, fabricated, analyzed, inspected, merchandised, marketed, modified,
25 distributed, labeled, advertised, promoted, sold, supplied, leased, rented, repaired, selected and
26 provided inadequate warnings and provided the SUBJECT VEHICLE and each of its component parts
27 and/or aftermarket parts and/or installation guides so that it was a defective and dangerous product,
28 unsafe for the respective use and purpose for which it was intended when used and driven as

1 recommended or for reasonably foreseeable misuse. In particular, the SUBJECT VEHICLE and each
2 of its component parts and/or aftermarket parts and/or installation guides, during a reasonably
3 foreseeable front impact crash, was dangerous and defective because its occupant restraint system,
4 supplemental restraint system, and the front driver's side seat track adjustment mechanism are and
5 were inadequately designed and constructed and failed to provide the degree of occupant restraint,
6 protection, and safety a reasonable consumer would expect in foreseeable accidents occurring in the
7 real world environment of its expected use.

8 50. As a direct and legal result of the negligence, carelessness, and unlawful conduct of the
9 Defendants, and each of them, and the defects inherent in the vehicle, defendants legally caused the
10 decedent's injuries, and subsequent death, legally resulting in Plaintiffs' special and general damages
11 as set forth herein.

12 WHEREFORE, plaintiffs pray for judgment against defendants as follows.

- 13 1. For special and economic damages including but not limited to medical and emergency
14 care, and funeral and burial expenses, according to proof at trial;
- 15 2. For general damages including damages for loss of consortium;
- 16 3. For prejudgment interest, as determined by and accrued according to applicable
17 statutes;
- 18 4. For costs of suit incurred herein; and
- 19 5. For any other and further relief the Court deems just and proper.

20 BY PLAINTIFF, **RICHARD TOWNE**, ONLY AS SUCCESSOR IN INTEREST TO THE
21 ESTATE OF **SHARA LYNN TOWNE**, DECEASED, and ONLY AGAINST DEFENDANTS,
22 GENERAL MOTORS CORPORATION; SATURN CORPORATION which will do business
in California as SATURN MOTOR CAR CORPORATION; AND DOES 1 THROUGH 20

- 23 6. For exemplary and punitive damages.

24
25
26
27 Signature on following page.
28

1 DATED: February 23, 2006

Respectfully submitted,

2 BISNAR & CHASE, LLP

3
4
5 By: *Clarice J. Letizia*
6 BRIAN D CHASE, ESQ.

CLARICE J. LETIZIA, ESQ.

Attorneys for Plaintiffs, Plaintiffs, RICHARD TOWNE,

individually and as successor in interest to the estate

7 of SHARA LYNN TOWNE, deceased; AARON BURDGE

8 and HOLLIE BURDGE, minors, by and through their

Guardian ad Litem, JOHNNY BURDGE, and

9 ANDREW BURDGE

10
11
12 DEMAND FOR JURY TRIAL

13
14 Plaintiffs hereby demand a trial by jury.

15
16 DATED: February 23, 2006

BISNAR & CHASE, LLP

17
18
19 By: *Clarice J. Letizia*
20 BRIAN D CHASE, ESQ.

CLARICE J. LETIZIA, ESQ.

Attorneys for Plaintiffs, Plaintiffs, RICHARD TOWNE,

individually and as successor in interest to the estate

21 of SHARA LYNN TOWNE, deceased; AARON BURDGE

22 and HOLLIE BURDGE, minors, by and through their

23 Guardian ad Litem, JOHNNY BURDGE, and

24 ANDREW BURDGE

POSTED

CALIFORNIA TRAFFIC COLLISION CODING Page 2 (Rev. 8-97) OPI 042

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COLLISION (MO DAY YEAR) 7.4.04		TIME (0400) 0112	NOIC # 5407	OFFICER ID. M-16	NUMBER 04-11823
OWNER'S NAME SATHERN CALIF Edison		OWNER'S ADDRESS		NOTIFIED ☒ YES ☐ NO	
PROPERTY DAMAGE Blue Pole # 15014818		DESCRIPTION OF DAMAGE			

SEATING POSITION 1 - DRIVER 2 TO 6 - PASSENGERS 7 - STATION WAGON REAR 8 - REAR OCC. TRK OR VAN 9 - POSITION UNKNOWN 0 - DRIVER	OCCUPANTS A - NONE IN VEHICLE B - UNKNOWN C - LAP BELT USED D - LAP BELT NOT USED E - SHOULDER HARNESS USED F - SHOULDER HARNESS NOT USED G - LAP/SHOULDER HARNESS USED H - LAP/SHOULDER HARNESS NOT USED I - PASSIVE RESTRAINT USED K - PASSIVE RESTRAINT NOT USED	SAFETY EQUIPMENT L - AIR BAG DEPLOYED M - AIR BAG NOT DEPLOYED N - OTHER P - NOT REQUIRED CHILD RESTRAINT Q - IN VEHICLE USED R - IN VEHICLE NOT USED S - IN VEHICLE USE UNKNOWN T - IN VEHICLE IMPROPER USE U - NONE IN VEHICLE	M/C BICYCLE - HELMET DRIVER V - NO W - YES PASSENGER X - NO Y - YES	EJECTED FROM VEHICLE 0 - NOT EJECTED 1 - FULLY EJECTED 2 - PARTIALLY EJECTED 3 - UNKNOWN
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ITEMS MARKED BELOW FOLLOWED BY AN ASTERISK (*) SHOULD BE EXPLAINED IN THE NARRATIVE

TRAFFIC CONTROL DEVICES		TYPE OF VEHICLE			MOVEMENT FOLLOWING COLLISION			
1	2	3	1	2	3	1	2	3
A CONTROLS FUNCTIONING	☒			A PASSENGER CAR / STATION WAGON			A STOPPED	
B CONTROLS NOT FUNCTIONING*				B PASSENGER CAR W/ TRAILER			B PROCEEDING STRAIGHT	
C CONTROLS OBSCURED				C MOTORCYCLE / SCOOTER	☒		C RAN OFF ROAD	
D NO CONTROLS PRESENT - MOTOR*				D PICKUP OR PANEL TRUCK			D MAKING RIGHT TURN	
TYPE OF COLLISION				E PICKUP / PANEL TRUCK W/ TRAILER			E MAKING LEFT TURN	
A HEAD-ON				F TRUCK OR TRUCK TRACTOR			F MAKING U TURN	
B SIDE SWIPE				G TRUCK / TRUCK TRACTOR W/ TRLR.			G BACKING	
C REAR END				H SCHOOL BUS			H STOPPING / STOPPING	
D BROADSIDE				I OTHER BUS			I PASSING OTHER VEHICLE	
E HIT OBJECT				J EMERGENCY VEHICLE			J CHANGING LANES	
F OVERTURNED				K HIGHWAY CONST. EQUIPMENT			K PARKING MANEUVER	
G VEHICLE / PEDESTRIAN				L BICYCLE			L ENTERING TRAFFIC	
H OTHER*				M OTHER VEHICLE			M OTHER UNSAFE TURNING	
MOTOR VEHICLE INVOLVED WITH				N PEDESTRIAN			N KING INTO OPPOSING LANE	
A NON - COLLISION				O MOPED			O PARKED	
B PEDESTRIAN				OTHER ASSOCIATED FACTOR(S) (MARK 1 TO 2 ITEMS)				
C OTHER MOTOR VEHICLE				A NO SECTION VIOLATION	CITED	YES		
D MOTOR VEHICLE ON OTHER ROADWAY				B NO SECTION VIOLATION	CITED	YES		
E PARKED MOTOR VEHICLE				C NO SECTION VIOLATION	CITED	YES		
F TRAIN				SOBERITY - DRUG PHYSICAL (MARK 1 TO 2 ITEMS)				
G BICYCLE				D			A HAD NOT BEEN DRINKING	
H ANIMAL				E VISION OBSCUREMENT			B HBD - UNDER INFLUENCE	
I FIXED OBJECT				F INATTENTION*			C HBD - NOT UNDER INFLUENCE*	
J OTHER OBJECT:				G STOP & GO TRAFFIC			D HBD - IMPAIRMENT UNKNOWN*	
PEDESTRIAN'S ACTIONS				H ENTERING / LEAVING RAMP			E UNDER DRUG INFLUENCE*	
A NO PEDESTRIANS INVOLVED				I PREVIOUS COLLISION			F IMPAIRMENT - PHYSICAL*	
B CROSSING IN CROSSWALK AT INTERSECTION				J UNFAMILIAR WITH ROAD	☒		G IMPAIRMENT NOT KNOWN	
C CROSSING IN CROSSWALK - NOT AT INTERSECTION				K DEFECTIVE VEH. EQUIP.: CITED			H NOT APPLICABLE	
D CROSSING - NOT IN CROSSWALK				L UNINVOLVED VEHICLE			I SLEEPY / FATIGUED	
E IN ROAD - INCLUDES SHOULDER				M OTHER*			J HAZARDOUS MATERIAL	
F NOT IN ROAD				N NONE APPARENT				
G APPROACHING / LEAVING SCHOOL BUS				O RUNAWAY VEHICLE				

ROADWAY SURFACE

A DRY

B WET

C SNOWY - ICY

D SLIPPERY (MUDDY, OILY, ETC.)

ROADWAY CONDITION(S)
(MARK 1 TO 2 ITEMS)

A HOLES, DEEP RUT*

B LOOSE MATERIAL ON ROADWAY*

C OBSTRUCTION ON ROADWAY*

D CONSTRUCTION - REPAIR ZONE

E REDUCED ROADWAY WIDTH

F FLOODED*

G OTHER*

H NO UNUSUAL CONDITIONS

SKETCH

INDICATE NORTH

219P

255P

0

0

0

0

OSP 08 13008

TA000091057

ED / WITNESS / PASSENGERS
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TA000091058

ORIGINAL

Page 4

INCIDENT/OCCURRENCE 04-04	TIME (2400) 0112	NCIC NUMBER 5407	OFFICER I.D. NUMBER M16	NUMBER 04-11823
TYPE Narrative ☒ Collision Report Supplemental ☐ Other:		TYPE SUPPLEMENTAL (IF APPLICABLE) BA update ☐ Hazardous Materials ☐		☒ FATAL BE USED BY CRIMINAL ☐ School bus ☐ HR and run update ☐ Other:
COUNTY/JUDICIAL DISTRICT VISALIA / TULARE / VISALIA SUPERIOR COURT			REPORTING DISTRICT/SEAT 480-33	CITATION NUMBER
LOCATION/SUBJECT POBLE 765 FT. EAST OF GODDARD			STATE HIGHWAY RELATED YES ☐ NO ☒	

FACTS AND NOTIFICATION:

04-04 at approximately 0112 hours:

was contacted by phone at my residence by Visalia Police Department Dispatcher Pam DeLong regarding a fatal traffic collision that had occurred on Noble west of Lovers Lane. Dispatcher DeLong advised that she would be contacting Traffic Officer Alan Dunn to also respond. I arrived at the traffic collision at scene at approximately 0151 hours. All times, speeds, measurements found in this investigation are approximate. Measurements were made with a roll-a-tape and a steel tape.

Scene:

this area Noble is a two-lane east/west roadway divided by a standard broken center line. There is a large power pole located on the south side of Noble approximately 6 ft. south of the south side curb line. The pole is located in the parking lot of the business located at 2639 E. Noble. There is a working street light located on this power pole. Noble, at this location, is 45 mph posted roadway. At the time of the traffic collision the roadway and all roadway markings were in good condition. (Refer to factual diagram roadway details and measurements.)

Vehicles:

(2004 Saturn) was located on its wheels at its point of rest as shown on the factual diagram. V1 sustained major front end damage. The front of V1 had made contact with the described power pole. The front end of V1 was pushed inward toward the occupant's compartment. The hood was pushed in and upward. The right front tire was flat. All other tires were still inflated. This vehicle is equipped with driver and passenger side airbags. I noticed neither airbag had deployed during the traffic collision. D1/ [REDACTED] was located in the driver's seat of V1. D1/ [REDACTED] had expired from her injuries as a result of V1 colliding with the power pole.

Physical Evidence:

Blood sample was obtained by Dr. Walters at the time of the autopsy and the results are pending.

There were locked wheel skids located on the private parking lot at 2639 E. Noble. (Refer to factual diagram.)

Comments:

Due to fatal injuries to D1/ [REDACTED] no statement could be obtained.

REPORTER'S NAME AND I.D. NUMBER ETTICK, D. M16 dko	DATE 07/13/04	REVIEWER'S NAME [Signature]	DATE 7-21-04
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ORIGINAL 1391

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INCIDENT/OCCURRENCE 4-04	TIME (HHMM) 0112	NCIC NUMBER 5407	OFFICER I.D. NUMBER M16	NUMBER 04-17823
TYPE SUPPLEMENTAL (2nd APPLICABLE) Narrative ☒ Collision Report Supplemental ☐ Other		TO BE USED BY CRIMINAL JUSTICE BA update ☐ Fatal ☒ Hazardous Materials ☐ Hit and run update ☐ Other ☐		
COUNTY/JUDICIAL DISTRICT TULARE / TULARE / VISALIA SUPERIOR COURT		REPORTING DISTRICT/BEAT 480 / 33	CITATION NUMBER	
LOCATION/SUBJECT NOBLE 765 FT. EAST OF GODDARD		STATE HIGHWAY RELATED YES ☐ NO ☒		

OPINIONS & CONCLUSIONS:

Vehicle was driving a 2004 Saturn 4 door eastbound on Noble at a high rate of speed east of Goddard. Vehicle off the south side of the roadway at the entrance to a private business. V1's brakes applied enough to cause approximately 74 ft. of overlaying locked wheel skid from both the right and left set of tires. V1 continues eastbound on the private property until it collides with the power pole located in the parking lot of the business and comes to rest.

Area of Impact:

D1 - (V1 verses curb line) was determined by tire marks located at a driveway on the south side of Noble west of the business building as 658 ft. 6 in. east of the east curb line of Goddard.

D2 - (V1 verses power pole) was determined by placement of V1 at the power pole as 766 ft. 1 in. east of the east curb line of Goddard and 8 ft. 3 in. south of south curb line of Noble.

Intoxication:

Due to D1's fatal injuries no objective symptoms could be determined. A blood sample was obtained and the results are pending.

Cause:

D1 caused this traffic collision by being in violation of section 22350 VC, unsafe speed. This was determined by physical evidence (locked wheel skids) located at the scene and by the damage to V1.

Officer's Notes:

After arriving at the scene, I observed D1 seated in the driver's seat of V1. At this time D1 was not wearing any safety restraint belts however I was advised by Officer Moffett, A116, that when he arrived at the scene D1 was in fact wearing her lap and shoulder restraints. He had removed them to attempt to administer medical aid to D1. Officer Moffett also advised he had broken the right side quarter glass out of V1 to gain entry into V1 due to all the doors being locked. I also observed neither air bag had deployed on V1. After Tulare County Sheriff's Office responded D1 was removed from V1. Salcer and Dillard Mortuary took possession of D1.

Upon checking the interior of V1 I located a prescription bottle in the name of [REDACTED]. The label indicated that the pills were Phenazopyridine. The bottle was located in the glove box of V1.

PREPARED BY NAME AND I.D. NUMBER HETTICK, D. M16 dko	DATE 07/13/04	REVIEWER'S NAME [Signature]	DATE 7-21-04
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ORIGINAL

INCIDENT/OCCURRENCE 4-04	TIME (2400) 0112	NCIC NUMBER 5407	OFFICER I.D. NUMBER M16	NUMBER 04011823
TYPE SUPPLEMENTAL (X APPLICABLE) ☒ Narrative ☒ Collision Report ☐ Other: ☐ BA update ☐ Hazardous Materials ☒ Fatal ☐ Script ☐ Hlt and run update ☐ Other:		TO BE USED BY CR		
COUNTY/JUDICIAL DISTRICT VISALIA / TULARE / VISALIA SUPERIOR COURT			REPORTING DISTRICT/BEAT 480-133	CITATION NUMBER
LOCATION/SUBJECT ABLE 765 FT. EAST OF GODDARD			STATE HIGHWAY RELATED ☐ YES ☒ NO	

On 7-6-04 at approximately 0845 hours:

Officer and Officer Alan Dunn responded to Crane's towing to inspect V1 (2004 Saturn). V1 had major front end damage. The front end was pushed inward toward the driver's compartment approximately 20in. The hood was buckled upwards approximately 14in. The windshield was broken. The right quarter glass was broken, however this was done by emergency personnel at the scene. The front tires were removed. The right and left brake pads were in excellent condition. The rotors on both right and left front wheels were also in excellent condition. Due to the front end damage I could not inspect the master cylinder on the vehicle. All tires had good tread. The right front was flat however it was flat at the scene. There was damage to the interior and I also observed that neither airbag had deployed.

On 7-6-04 at approximately 1045 hours:

was contacted at Visalia Police Department by Animal Control Officer Paul Garcia. He advised that on 7-6-04 at approximately 0920 hours he responded to Truck Parts & Service at 2639 E. Noble regarding a dead dog at that location. Garcia states that he contacted Janilee Clark at the truck store. At this time he directed him to a dead dog that was in the flower bed in front of the business. The dog was facing in westerly direction. Garcia said that the dog was approximately 40lbs., tan and white male pit bull. The dog did not have any visible external injuries. It did have a small amount of blood coming out of its mouth.

On 7-6-04 at approximately 1415 hours:

responded to Truck Parts & Service at 2639 E. Noble. I then contacted Janilee Clark who stated that on 7-6-04 in the morning she arrived at work and observed the dog lying in the flower bed in front of the business. The dog was facing west. Clark stated that she had been at the business on Saturday 7-3-04 in the morning and she does not remember seeing the dog. Clark then showed me where a dog had defecated and vomited. I saw that Clark had placed a large piece of cardboard over the spot where she stated the dog had been located. I paced the location of the dog as 12ft. east of the front door entrance of the business. The feces was located 6ft. west of the northeast corner of the business and the vomit was located 9ft. west of the northeast corner of the business. All these items and the location of the dog are southeast of AOI 2 (V1 verses pole).

On 7-6-04 at approximately 1430 hours:

responded back to Crane's and reexamined the front end of V1 for any indication of V1 striking an animal. The plastic front bumper which had come off of V1 at AOI 2 was lying in front of V1. I could not

PREPARER'S NAME AND I.D. NUMBER HETTICK, D. M16 dko	DATE 07/13/04	REVIEWER'S NAME <i>RC</i>	DATE 7-21-04
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ORIGINAL

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INCIDENT/OCCURRENCE 04-04	TIME (2400) 0112	NCIC NUMBER 5407	OFFICER I.D. NUMBER M16	NUMBER 04-11823
TYPE SUPPLEMENTAL (X APPLICABLE) ☒ Collision Report ☐ Other: ☐ BA update ☐ Hazardous Materials		☒ Fatality ☐ School bus ☐ Hit and run update ☐ Other:		
COUNTY/JUDICIAL DISTRICT TULARE / VISALIA SUPERIOR COURT			BY DATE	REPORTING DISTRICT/BEAT 480 / 33
SUBJECT DOUBLE 765 FT. EAST OF GODDARD			CITATION NUMBER STATE HIGHWAY RELATED ☐ YES ☒ NO	

any evidence of V1 striking any type of animal. The only damage that could be located was from V1 striking with a power pole.

7-12-04:

contacted D1/ sister, by phone and made arrangements for her to come to Visalia Police Department and talk to me.

7-12-04 at approximately 1350 hours:

Visalia Police Department I met with who is D1/ sister and had been with her on night of 7-3-04 and the morning of 7-4-04. I first asked about her sister's health. She said that her sister suffered from Lupus which she had been diagnosed with several years ago. She said that her sister had morphine pump installed but it hadn't been working for several months. She stated that her sister was on Oxycotin. I asked if she and her sister were close, which she stated that they were and that they talked almost every day. I asked if her sister was sad, distraught, or had ever attempted or talked about suicide in the past. said, absolutely not, that her sister even with all her medical problems was a happy person and was very excited about becoming a grandmother for the first time.

than asked about the events on 7-03-04, prior to the traffic collision, states that both she and her sister had attended a get together in Goshen. says that just prior to them leaving the Goshen location both she and her sister were assaulted (there was a report filed with Tulare County Sheriff's Department). After the report was filed they both left each in their own cars. says that they were driving eastbound on Highway 198, she pulled off at Akers to stop at Jack-In-the-Box. her sister continued eastbound. After left Jack-In-the-Box, she got back onto Highway 198 continued eastbound towards Lovers Lane. She was going to stay at her sister's house for the night. As she approached Lovers Lane she saw the emergency vehicles and then saw her sister's car at the pole.

asked about the get together in Goshen, in particular was there any alcohol involved. stated that both she and sister are Christians and neither drink alcohol. states that she believes this was just a terrible accident and that her sister would not attempt to take her own life. She states that her sister was tired and possibly she went to sleep prior to the collision.

Recommendations:

None

PREPARER'S NAME AND I.D. NUMBER HETTICK, D. M16 dko	DATE 07/13/04	REVIEWER'S NAME [Signature] 1-67	DATE 7-21-04
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INCIDENT/OCCURRENCE	TIME (2400)	NCIC NUMBER	OFFICER I.D. NUMBER	NUMBER
04	0112	5407	M7	04-11823
TYPE SUPPLEMENTAL (X) APPLICABLE				
☒ Narrative ☒ Collision Report ☐ Other:		☐ BA update ☐ Hazardous Materials	☒ Fatal ☐ School bus	☐ HR and run update ☐ Other:
COUNTY/JUDICIAL DISTRICT			AGENCY	CITATION NUMBER
Visalia/Tulare/Visalia			BY 480 / 33	
LOCATION/SUBJECT			DATE	STATE HIGHWAY RELATED
Noble/Goddard				☒ YES ☐ NO

FACTUAL DIAGRAM LEGEND

Vehicle measurements are to the center of each wheel. All measurements were taken from the curb with a roll-a-tape.

VEHICLE AT REST

01 (2004 Saturn Ion, Lic# [REDACTED] - Vehicle measurements measured to the wheel.

Right front tire 762'6" east of the east curb line of Goddard and 9'7" south of the south curb of Noble.

Right rear tire 754'1" east of the east curb of Goddard, 6'2" south of the south curb line of Noble.

Left front tire 762'6" east of the east curb line of Goddard, 3'6" south of the south curb line of Noble.

Left rear tire 754'1" east of the east curb line of Goddard, 2'1" south of the south curb line of Noble.

PHYSICAL EVIDENCE

Two (2) rolls of 35mm color negatives taken at the scene and also taken of the vehicle during the vehicle inspection. These items booked into evidence at the Visalia Police Dept.

For placement of the vehicle and the roadway, refer to factual diagram by this officer.

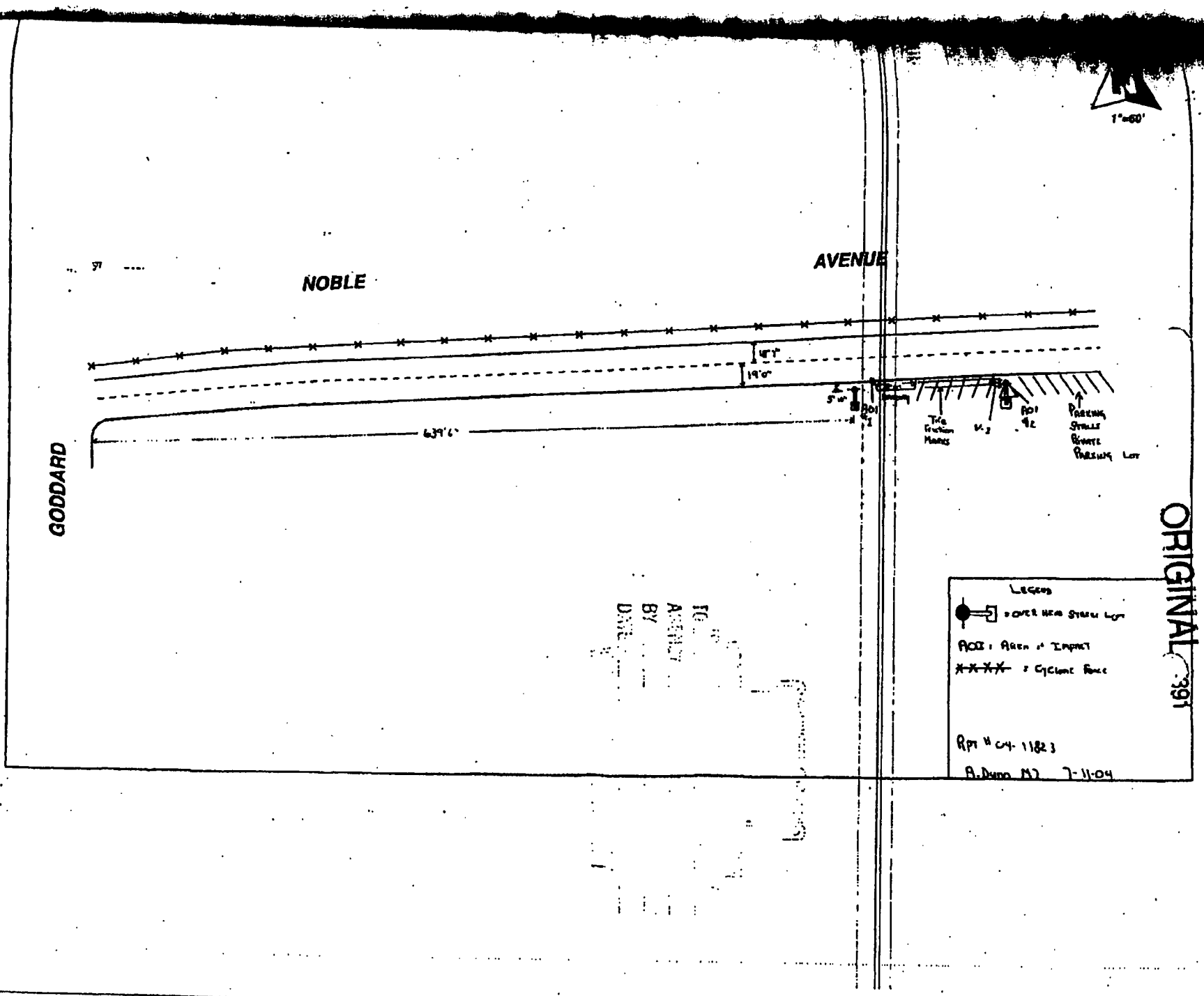
Initial report is by Off. Duke Hettick #M116.

No further information at this time.

PREPARER'S NAME AND I.D. NUMBER	DATE	REVIEWER'S NAME	DATE
A. Dunn #M7	7-10-04/jamr	[Signature]	7-21-04

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ORIGINAL

TO: _____
 FROM: _____
 BY: _____
 DATE: _____

LEGOS

 = OVER HILL STRAIN LGT

POS: AREA OF IMPACT

~~XXX~~ = CYCLONE FORCE

RPT # 44-11823

A. Dunn M2 7-11-04

ORIGINAL T391

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CALIFORNIA
ADDITIONAL/SUPPLEMENTAL
(Rev 7-90) OPI 042

INCIDENT/OCCURRENCE 004	TIME (2400) 0112	NCIC NUMBER 5407	OFFICER I.D. NUMBER A116	NUMBER B04-11823
TYPE SUPPLEMENTAL (X) APPLICABLE		TO BE USED BY C. []		
☒ Collision Report ☐ Other:		☐ BA update ☐ Hazardous Materials	☒ Fatal ☐ School	☐ HR and run update ☐ Other:
COUNTY/JUDICIAL DISTRICT TULARE/VISALIA		AGE RY	REPORTING DISTRICT/SEAT 480/33	CITATION NUMBER
SIGNATURE E/GODDARD		DATE	STATE HIGHWAY RELATED ☐ YES ☒ NO	

SUMMARY:

07/04/04 at approximately 0112 hours:

was dispatched to Noble and Lovers Lane in regards to a no-detail traffic collision. I was advised while en route to this location that the caller had advised that a vehicle had struck a pole.

approximately 0117 hours:

arrived on scene. I located the traffic collision which was west of Lovers Lane on Noble at 2639 W Noble. At this time I observed a 2004, Saturn, Ion, 4 door, silver in color, CA license: [REDACTED] which had been traveling eastbound on Noble and collided with a pole that was in the parking lot at 2639 E Noble. At this time I exited my vehicle and approached the vehicle. I observed one occupant in the vehicle who was in the driver seat. The vehicle doors were locked and all windows were up.

At this time Officer Lyon, K42 had arrived on scene at which time I advised him of the situation. Officer Lyon, K42 obtained his CPR mask at which time I shattered the rear passenger window due to the fact that the occupant was not responding. I then unlocked the door and contacted the occupant. The occupant was later identified as [REDACTED]. I felt for a pulse of D1 [REDACTED] at which time I could not obtain a pulse and D1 [REDACTED] was not breathing at this time. Officer Lyon, K42 then responded to the driver side of the vehicle at which time I unlocked the driver's door. We then disengaged the seatbelt and laid the driver seat back to put D1 [REDACTED] in a position to start CPR. Before starting CPR, I advised Visalia Police Department Dispatch at 0119 hours to dispatch EMS to our location. At this time Officer Lyon and I started CPR. Officer Lyon, K42 and I continued CPR until Emergency Personnel arrived on scene. D1 [REDACTED] was unable to be revived.

At 0125 hours:

was advised by EMS Personnel from American Ambulance Unit 309 that D1 [REDACTED] was deceased. Emergency Personnel on scene was Steve Simonek and Robert Benitez. At this time I advised my on-duty supervisor of the incident at which time our Traffic Units were dispatched to perform an investigation in regards to the accident. Officer Duke Hettick, M16 and Alan Dunn, M7 arrived on scene at which time the scene was turned over to them. Deputy Joe Rodriguez arrived at our location at 0220 hours at which time he took control of the deceased body of D1 [REDACTED]. Refer to Deputy Rodriguez' Tulare County Sheriff's Report

PREPARED BY NAME AND I.D. NUMBER C MOFFETT A116 LC/128	DATE 07/08/04	REVIEWER'S NAME <i>[Signature]</i>	DATE 7-21-04
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REPORT OCCURRENCE	TIME (2400)	NCIC NUMBER	OFFICER I.D. NUMBER	NUMBER
04	0112	5407	A116	304-11823
TYPE SUPPLEMENTAL (IF APPLICABLE)				
☐ Narrative ☐ Supplemental	☒ Collision Report ☐ Other:	☐ BA update ☐ Hazardous Materials	☒ Fatal ☐ School bus	☐ HR and run update ☐ Other:
COUNTY/JUDICIAL DISTRICT			REPORTING DISTRICT/BEAT	CITATION NUMBER
LA/TULARE/MISALIA			BY 480/33	
UNKNOWN SUBJECT			STATE HIGHWAY RELATED	
LE/GODDARD			YES	☒ NO

10368. It should be noted that the vehicle was towed and impounded for evidence by this agency. I had contacted after EMS had arrived on scene a Farmersville, 93223, phone who had been with a friend who had called in the accident. I was then unable interview due to the fact that he is a deaf mute. At this time I concluded my investigation of this agent.

Further Information. End of Report.

PREPARER'S NAME AND I.D. NUMBER	DATE	REVIEWER'S NAME	DATE
C MOFFETT A116 LC/128	07/08/04	<i>[Signature]</i> A116	7-21-04

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ORIGINAL T397

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DATE OF INCIDENT/OCCURRENCE 07/04/04	TIME (2400) 0112	MCIC NUMBER 5407	OFFICER I.D. NUMBER K42	NUMBER C04-11823
TYPE Narrative ☐ Supplemental ☒		TYPE SUPPLEMENTAL (IF APPLICABLE) BA update ☐ Hazardous Materials ☐ Fatal ☒ School bus ☐ Hit and run update ☐ Other: ☐		CITATION NUMBER
CITY/COUNTY/JUDICIAL DISTRICT VISALIA/TULARE/VISALIA			REPORTING AGENCY/BEAT 2040/33	STATE HIGHWAY RELATED ☒ YES ☐ NO
LOCATION/SUBJECT NOBLE/GODDARD (2639 E NOBLE)				

WITNESS INFORMATION:

DOB: [REDACTED]

On 07/04/04 at approximately 0112 hours:

I was dispatched to a no-detail traffic accident that occurred in the vicinity of Lovers Lane and Noble.

While responding to this location, I was traveling eastbound 198 approaching the Lovers Lane exit where I noticed off to my right and on the south side of 198, that it appeared that a gray compact vehicle had collided with a telephone pole, eastbound Noble, west of Lovers Lane.

At this time I communicated my observation to Visalia Police Department Dispatch and responded to the scene.

Upon my arrival there I noticed that there was a green vehicle parked to the south of the traffic collision location in the parking lot of the business identified as 2639 E Noble. I noticed that there were two subjects standing outside of this green vehicle, identified as [REDACTED] and upon arriving at this scene, it did not appear that there were any occupants in the vehicle involved in the traffic collision.

I made contact with a subject who identified himself as [REDACTED] who stated that he had been driving eastbound on Noble when he had noticed that the vehicle had collided with a telephone pole west of Lovers Lane. He stated that he traveled past the collision scene, made a U-turn and came back where he then noticed that a female was inside and appeared to be deceased. At this time it did not appear that anyone was inside; however when [REDACTED] mentioned that a female was inside and possible deceased I responded to the vehicle at which time Officer Moffett had also arrived on scene and we noticed D1 [REDACTED] who was slumped down in the driver's seat and slightly over the center consol.

At this time, myself and Officer Moffett, A116 attempted to open the doors to the vehicle finding that they were either locked or unable to be opened.

Officer Moffett, A116 also had advised Dispatch to have ambulance respond Code 3 as we attempted to open the doors to the vehicle. Officer Moffett, A116 was able to break the rear passenger side window and open the doors where he was then able to open the front driver side door of the vehicle. At this time I was unable to un-seatbelt the D1 [REDACTED] who appeared to have sustained serious injuries and

PREPARER'S NAME AND I.D. NUMBER M LYON K42 LC/126	DATE 07/08/04	REVIEWER'S NAME [Signature] M67	DATE 7-21-04
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ORIGINAL T391

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DATE OF INCIDENT/OCCURRENCE 04/04	TIME (2400) 0112	NOC NUMBER 5407	OFFICER I.D. NUMBER K42	NUMBER C04-11823
TYPE SUPPLEMENTAL (X) APPLICABLE		CONCH		
☒ Narrative ☒ Collision Report ☐ Other:		☐ BA update ☐ Hazardous Materials	☒ Fatal ☐ School bus	☐ Hit and run update ☐ Other:
CITY/COUNTY/JUDICIAL DISTRICT VISALIA/TULARE/VISALIA		REPORTING DISTRICT/BEAT 2040/33		CITATION NUMBER
LOCATION/SUBJECT NOBLE/GODDARD (2639 E NOBLE)		DATE 07/08/04		STATE HIGHWAY RELATED ☒ YES ☐ NO

was discolored and pale and did not have any pupil reaction to the introduction of light. Officer Moffett, 116 was then able to check for a pulse and breathing finding that there was none.

Because of serious injuries to the D1/ legs, we were unable to move the D1/ out of the vehicle and began to perform CPR as she sat in the front seat of the vehicle.

CDF Fire Engine #9, along with Visalia Fire Engine #1 arrived on scene at 0125 where they then took over medical attention for the victim. For further information refer to supplemental reports by assisting officers.

End of Report.

PREPARER'S NAME AND I.D. NUMBER M LYON K42 LC/128	DATE 07/08/04	REVIEWER'S NAME <i>[Signature]</i> M67	DATE 7-21-04
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